

TATA Limited

18 Grosvenor Place,
London SW1X 7HS
Registered in England
No. 92560

Telephone : 020-7235 8281-8
FAX: 020-7235 6584
Email: orders@tata.co.uk
VAT Registration No. GB 239 2996 18

Order Date : 17.03.2022
Release Date : 18.03.2022
Validity End Date : 18.05.2025
Ref No.:
Order No. and Reference No. must appear
on all correspondence , Advices, Shipping
Specification, Invoices and Packages

**To: ACRE Coking & Refractory Engineering
Consulting Corporation, MCC
No.128 Gaoneng street,Hi-tech zone
Dalian Hi-Tech Industrial Zone
Dalian
Liaoning
Pin Code: 116085.
China
E-Mail :- acrenahong@gmail.com
Phone No :- 0086-15840908989
Fax No. :- 0086-411-82460235**

Please supply and deliver the following goods according to the terms,
conditions and instructions specified herewith

On Behalf of TATA STEEL LIMITED, INDIA

Header Details

AGREEMENT FOR DESIGN, MANUFACTURE AND SUPPLY OF REFRACTORY AND PLANT,
MACHINERY & EQUIPMENT WITH AUXILIARIES FOR Coke Oven Batteries 6A and
6B, AT TATA STEEL LIMITED, JAMSHEDPUR, JHARKHAND, INDIA

This purchase order is part of the Agreement No. TATASTEEL/JSR/43/22 dtd
18.03.2022.

By and Between

TATA STEEL LIMITED, an existing Public Limited Company within the
meaning of the Companies Act, 2013 and having its registered office at
24 Homi Modi Street, Fort, Mumbai 400 001, India, having one of its
plants Jamshedpur Plant at Jamshedpur, Jharkhand (hereinafter referred
to as the "Purchaser") which term or expression unless excluded by or
repugnant to the context or the meaning thereof, shall be deemed to
include its successors and permitted assigns, OF THE ONE PART,

ACRE Coking & Refractory Engineering Consulting Corporation, a Company
incorporated under the Chinese Law and having its Registered Office at
MCC No. 128, Gaoneng Street, Qixianling, Dalian Hi-Tech Industrial Zone,
Dalian, Liaoning, Pin Code: 116085., China (hereinafter referred to as
"Contractor"), which term or expression unless excluded by or repugnant
to the context or meaning thereof, shall be deemed to include its
successors and permitted assigns, OF THE OTHER PART.

WHEREAS the Purchaser, for its " Coke Oven Batteries 6A and 6B"
hereinafter referred to as "Project" of its Site, desire to engage an
internationally reputed company who is having expertise and competence
in the field of Design, Manufacturing and Supply of Equipment for
setting up of the Project.

AND WHEREAS the Contractor has declared that the Contractor is in a
position to disclose, impart, deliver and transfer the requisite

engineering data, drawings and documents of those items which are in the scope of the Contractor in this Contract, to the Purchaser for the engineering of the Project and for erection, start-up and commissioning of the Project with the aim to manufacture product as specified in the Contract.

AND WHEREAS the Contractor has obtained clarifications on technical and commercial aspects, inspected the site and surroundings of Project and has examined and considered all other matters, conditions and things, probable contingencies including delays, hindrances and interferences and generally all matters incidental thereto and ancillary thereof, affecting the execution and completion of the Scope of Work of the Contractor.

AND WHEREAS the Contractor has confirmed and declared that it is an internationally reputed company having expertise in the said field of Design, manufacture and supply of plant, machinery and equipment with auxiliaries for the Project and the Contractor has also confirmed that he shall provide the required expertise for the said field of Design, manufacture and supply of plant, machinery and equipment with auxiliaries for the similar Projects.

AND WHEREAS the Contractor has submitted to the Purchaser an offer to perform the Scope of Work/ Supplies, responsibilities and obligations intended under the Agreement.

AND WHEREAS the Purchaser relying upon the above representation Contractor herein above has entrusted to the Contractor the work covering Design, Manufacture and Supply of Plant, Machinery and Equipment with auxiliaries, Manuals and instructions hereinafter referred to as "Supply of Equipment" for the Project, at TATA STEEL, Jamshedpur, Jharkhand, India

AND WHEREAS the Contractor has acknowledged that the Purchaser has entrusted the said Supply of Equipment based on its representations made hereinabove and accepted to execute the same.

AND WHEREAS the Contractor confirms that all items for Supply of Equipment as per agreed Scope of Work required to set up the Project will be supplied within time specified by the Contractor are included and covered by the Contract Price.

AND WHEREAS the Contractor further confirms and represents that they are fully competent under law and are authorized under its Memorandum and Article of Association and/ or have taken necessary board and/or shareholder's approval to enter into this Agreement.

The Purchaser and the Contractor mentioned herein shall be individually referred to as "Party" and jointly as "Parties".

NOW IT IS HEREBY AGREED by and between the Parties follows:

ARTICLE 1

In consideration of the payments to be made by the Purchaser to the Contractor, the Contractor hereby covenants with the Purchaser for Supply of Equipment for the Project conforming to the Technical Specification, the Scope of Work and other documents as defined, referred and/or enclosed in this Agreement.

ARTICLE 2

The Contractor specifically confirms that the Purchaser shall be absolutely free, full and unfettered right to utilise, without any limitation whatsoever, the Designs and Drawings, provided by the Contractor towards fulfillment of its obligations under this contract. Purchaser shall pay license fees for reuse as indicated in Schedule 2 for use of these Design and Drawings in its future Projects. The Contractor further confirms that it shall not raise any kind of objection / claim for any payment whatsoever for utilising / modifying the said Design and Drawings for development and construction of similar future Projects or modifications of present Project, by the Purchaser. The Contractor agrees to provide the Purchaser the real time access to the progressive work under this agreement including but not limited to data, calculations, design basis and drawings.

ARTICLE 3

The Agreement is effective from the date of issuance of Purchase Orders, i.e., 18.03.2022, which is hereinafter referred to as "The Contract Effective Date" and shall bind the parties immediately.

The Delivery schedule for delivery of Equipment shall be as per Schedule 3 (COMPLETION SCHEDULE AND LIQUIDATED DAMAGES) of the Agreement and all other contractual obligations shall be reckoned from the Contract Effective Date.

This Agreement shall remain valid till the Final Acceptance Certificate is issued by the Purchaser or 72 months from the Contract Effectiveness Date, whichever is earlier. However, if the project progress is delayed due to the reasons attributable to the Purchaser, the maximum validity period of this Agreement shall not exceed 75 months from the Contract Effectiveness Date. Beyond which period, both the Parties will mutually discuss the unexecuted portion of work under the Agreement and extend its validity.

ARTICLE 4

The following Schedules Enclosure and Annexures shall be deemed to form and be read and construed as part and parcel of this Agreement.

Schedule 1 .. Scope of work/ Supply of Equipment

Schedule 2 .. Contract Price

Schedule 3 .. Completion Schedule and Liquidated Damages

Schedule 4 .. Terms of Payment

Schedule 5 .. Other Features

Schedule 6 .. General Conditions

Schedule 7 .. Special Conditions

Enclosure I .. Technical Specification;

Annexure I .. Form of Advance Bank Guarantee

Annexure II .. Form of Performance Bank Guarantee

Annexure III .. Safety /OHAS standard

Annexure IV .. Form of ICT Certificate

Annexure V .. Form of Provisional Acceptance Certificate

Annexure VI .. Form of Final Acceptance Certificate

Annexure VII .. Inspection and Test Procedures

Annexure VIII .. Form of Inspection Call

Annexure IX .. Form of Letter of Credit

Annexure X .. Time Schedule

Annexure XI .. Status of Design, Manufacture / Inspection /
Delivery # Manufactured Items

Annexure XII .. Status of Design, Manufacture / Inspection /
Delivery # Bought-out Items

Annexure XIII .. Safety in Transportation of Materials by Road

Annexure XIV .. Responsibility Matrix for Ensuring End to End Solution
in Safe Transportation of Material

The Schedules, Enclosure and Annexures listed above and forming part of this Agreement are mutually complementary and explanatory to one another. However, should there be any ambiguities or discrepancies between Schedules 1 to 5 and the General Conditions given as Schedule 6, the provision contained in the Schedules 1 to 5 above shall prevail. Should there be any ambiguities or discrepancies between Schedule 7 and Schedules 1 to 6, the provision contained in the Schedules 7 shall prevail. Should there be any ambiguities or discrepancies between any Schedule(s) and Technical Specification, the provision contained in the Schedule(s) shall prevail except to the extent that any provision of the Technical Specification imposes upon the Contractor a higher standard, quality, level of work / service or quantum than another provision of the Schedules, in which case the higher standard, quality, level of work / service or quantum shall apply.

Should there be any ambiguities or discrepancies between the Articles and Schedules, the provision of Articles shall prevail.

In case of ambiguities or discrepancies within this Agreement, the following shall apply:

1) between two or more clauses of this Agreement, the provisions of a specific clause relevant to the issue under consideration shall prevail over those in other clauses;

2) between any value written in numerals and that in words, the latter

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shall prevail.

ARTICLE 5

All the terms, words and expressions used in this Agreement will, wherever the context so permits have the same meaning and are respectively defined in the Schedule 6 under this Agreement.

SCHEDULE 1

SCOPE OF WORK

1.0 SCOPE OF WORK

1.1 Unless otherwise expressly limited in the Technical Specifications, the Contractor's obligation cover design & engineering, Manufacture, Supply of Equipment, modification, if any, testing, pre-commissioning; start-up & commissioning and guarantee the performance guarantee parameters of the Equipment as detailed hereafter, in accordance with the plans, specifications, drawings, codes and any other documents as specified in this Contract along with fulfilling all other obligations as the Contractor may be required to fulfil as per the terms of the Contract.

The Contractor shall, unless specifically excluded in the Contract, perform all such work / Supply of Equipment not specifically mentioned in the Contract but that can be reasonably inferred from the Contract as being required for attaining Completion of the Project as if such work / Supply of Equipment were expressly mentioned in the Contract.

The Contractor shall furnish the specification / details required for the construction, Commissioning, start-up, ramp-up, operation and maintenance of the Equipment.

1.2 In consideration of the payments to be made by the Purchaser, the Contractor shall be responsible for Supply of Equipment on F.O.B. Port of Shipment as per INCOTERMS, 2010 basis within the time stipulated in Schedule 3 (Delivery and Liquidated Damages and Performance Guarantee) and as per Scope of Work. The term "Port of Shipment" shall mean the international sea ports designated by Contractor (Qingdao, Dalian, Bayuquan, Tianjin, Shanghai) where Contractor shall deliver the Equipment on F.O.B basis to the Purchaser

The names of Chinese sea ports are Qingdao, Dalian, Bayuquan, Tianjin, Shanghai.

1.3 The Supplied Equipment is to be suitably and securely packed for ocean shipment and for storage under tropical conditions as well as subsequent movement by road transport in India. The provisions of INCOTERMS 2010 for the term "F.O.B." shall be applied.

1.4 In the event of air transportation at the sole discretion of the Purchaser, #FOB port of shipment# shall be considered as #FCA airport of despatch# but always in accordance with letter of credit.

1.5 COMMISSIONING SPARES

Contractor will submit exhaustive spare parts list with quantity, unit price & lead time for delivery to Purchaser required for start-up and

commissioning of the Equipment till Provisional Acceptance by the Purchaser. The prices shall be valid till PAC of the Project. The purchaser shall select the spare parts from exhaustive list submitted by Contractor. In case Commissioning Spares are found to be inadequate during commissioning of Equipment, the Contractor shall supply any extra quantity of commissioning Spares that may be required during the above mentioned period, free of cost if such spares are not forming a part of the exhaustive list, such that commissioning & schedule is not affected in any way. Commissioning Spares supplied by the Contractor and paid by the Purchaser shall be the property of the Purchaser even if they are not used for commissioning. The order for commissioning spares shall be placed on Contractor as per mutual agreement depending on lead time for deliveries.

Under critical circumstances, when specific commissioning spares fall short or not available with the Contractor and as per the request of the Contractor, Purchaser shall provide required commissioning spares subject to the availability of the same in Purchaser's stores. The Contractor shall subsequently replace the said spares free of cost to the Purchaser at his stores at Jamshedpur at the earliest.

1.6 TOOLS/ SPECIAL TOOLS

Supply of tools, including special equipment/instruments, jigs and fixtures, lifting and hoisting belts, sling etc. required for commissioning, normal repair & maintenance, including special instruments required for calibration programme etc. Calibration facilities for general purpose instrument and weighing system shall be provided by the Purchaser. The Contractor shall provide purchase specification including the names of suppliers giving sufficient details to enable the Employer to procure such special tools, tackles, instruments and appliances, at a later date when necessary, after successful commissioning.

1.7 INITIAL FILLS/ CONSUMABLES

The Contractor shall supply along with the Equipment, the oils, grease & lubricants required for the initial fill including, flushing liquor and also chemicals for pickling, etc., well in advance, for commissioning of the Equipment. Should the oil, grease & lubricants found to be inadequate, the Contractor shall supply without any extra cost to the Purchaser, additional required oil, grease & lubricants, within the time schedule to ensure commissioning is not held-up. The un-used oil, grease & lubricants shall be the property of the Purchaser. These oils, grease & lubricants should be preferably of Indian Origin. In the case of imported oil, grease & lubricant, Specification for the same shall be furnished by the Contractor for procurement in future. The Contractor shall also furnish consumption rates of all the consumables along with estimated annual requirement and purchase specification for timely procurement by the Purchaser for future requirements

The Contractor shall supply foundation bolts, anchor bolts, shims, packing materials and any other consumable that may be required during/ after installation of equipment but is not a part of the pre-assembled equipment. These items shall be delivered along with the equipment.

1.8 TEN YEARS OPERATION SPARES

One (01) copy along with soft copy of itemised list with unit price of spare parts, for ten years# normal working of the Equipment after Provisional Acceptance, shall be submitted by the Contractor alongwith price bid. The itemised prices of such spares shall be firm and binding till the date of Provisional Acceptance of the Equipment. However, the itemised unit rates may be escalated @ 5% per annum thereafter for the next two years and at a reasonable rate for subsequent years.

1.9 HANDLING INSTRUCTIONS

The Contractor shall, wherever required furnish his expert advice and handling instructions to the Purchaser, free of cost in regard to the safe handling while transportation, storage, installation and erection of Supplied Equipment.

The Purchaser, to the extent possible, shall follow the instructions of the Contractor with regard to handling and storage of Supplied Equipment. However, the Contractor shall remain liable for damages arising out of handling & storage of Supplied Equipment, even after the Purchaser follows the instructions / advise of the Contractor as mentioned above.

However, if the damages are due to the fault of the Purchaser (for not complying with the handling instructions as communicated by the Contractor), then the same shall be modified/replaced by the Contractor on chargeable basis to the Purchaser.

1.10 SUBMISSION OF MAINTENANCE MANUALS

Ten (10) Hard copies along with soft copies of maintenance manuals shall be supplied by the Contractor progressively and no later than three (3) months prior to scheduled commencement of cold tests, covering all Equipment/item supplied by the Contractor as well as those purchased by the Contractor from other sources. These manuals shall inter-alia cover procedure for adjustment, dismantling (if any) and re-assembly of Equipment, all phases of preventive maintenance including detailed explanation of Equipment/system operation with lubricating charts, showing every point requiring lubrication, type and grade of lubricant, schedule for lubrication, and the correct amount and grade of oil or grease necessary for refill after drainage, as required.

One (1) copy of the maintenance manual relevant for each Equipment shipment shall be delivered as a part of the consignment to the Port of Shipment on F.O.B / DDP, IM Section / designated warehouse, Tata Steel Site, basis, as applicable.

1.11 SUBMISSION OF OPERATING MANUALS

Ten (10) Hard copies along with soft copies of operating manuals/instructions shall be supplied by the Contractor, not later than three (3) months prior to commencement of cold tests of equipment/items including all details necessary to ensure proper procedure and sequence of operation and safety instructions for its Scope of Work.

One (1) copy of the operating manual relevant for each Equipment shipment shall be delivered as a part of the consignment to the Port of Shipment on F.O.B basis, as applicable.

1.12 SAFETY HAZARDS

Whenever applicable, during engineering, the Contractor shall identify and consider all possible hazards expected to be arising during the operation and maintenance of the supplied equipment and shall accordingly provide safety precautionary measures in the design of the supplied equipment itself to prevent hazards. This shall be documented by the Contractor in a process Safety Information (PSI) and Process Hazards Analysis (PHA) at equipment level and submitted to the Purchaser. Such PHA and PSI would go on to form part of the Operating Manual schedule to this Contract. PHA shall consist of a process hazards review consisting of potential hazards, failure analysis, ergonomic issues, engineering controls and human controls with respect to Purchaser-specific functional description sheets and process and instrumentation diagrams. An outcome of PHA would be a reduction and/or complete elimination of the inherent risk level and the same should be documented. The completeness of PSI/PHA study should be in line with prevailing Occupational Safety and Health Administration (OSHA) 1910.119 standards. The existing formats developed by the Purchaser should be followed for implementing these standards.

1.13 POSITIVE ISOLATION

The contractor shall ensure for the provision of positive isolations for all items supplied as per Purchaser safety norms. The equipment shall be marked before dispatching the same as per the Purchaser standards for marking.

1.14 CONTRACTOR#S RESPONSIBILITY FOR COMPLETENESS:

The Contractor will be solely liable and responsible for completeness of Supply of Equipment to fulfil the functional requirements of the Project and is construed to be included in the Contract price.

All work/ supplies whether specifically mentioned or not in the Agreement but which are necessary for i) completion; ii) timely, efficient, safe and stable construction, erection, commissioning; iii) fulfilment of the performance guarantees parameters; and iv) operation and maintenance of the Project during guarantee period shall be provided and/ or done by the Contractor without additional financial implications to the Purchaser. This clause will not apply to the units and works specifically excluded under this Agreement.

1.15 VALUE ENGINEERING

The Contractor may, at any time, submit to the Purchaser a written proposal which (in the Contractor#s opinion) will, if adopted, (i) accelerate completion; (ii) reduce the cost to the Purchaser of executing, maintaining or operating the Works; (iii) improve the efficiency or value to the Purchaser of the completed Works; or (iv) otherwise be of benefit to the Purchaser. Studies required for any possible value engineering shall be carried out at any stage of the PROJECT and if at any point of time, Purchaser finds a scope for improvement of CAPEX or OPEX or quality, and then necessary rework will be done with mutual consent and agreement on additional effort, time and cost.

SCHEDULE - 2

PRICE SCHEDULE

2.1 CONTRACT PRICE

2.1.1 The Purchaser hereby agrees to pay to the Contractor the Contract Price on lumpsum basis in consideration of the performance by the Contractor of its responsibilities, liabilities and obligations under the Agreement. The Contract Price shall be the aggregate of: USD Fifty Million and Five Hundred Thousand, [USD 50,500,000], or such other sums as may be determined in accordance with the terms and conditions of the Contract.

Price Break-up of Contract Price for FOB supply:

Refractories : USD 15,186,648.86

Equipment : USD 35,313,351.14

2.1.2 The Contract Price shall be for the entire Scope of Work/ Supply of Equipment broadly indicated under the Agreement and all the contractual obligations of the Contractor.

2.1.3 The Contract Price shall be firm, without any escalation/ price variation whatsoever, and binding throughout the period of the Agreement.

2.1.4. The license fees for reuse of the Design and Drawings by the Purchaser is as below

- a) 1st reuse: - USD 80% of Contract Price for Engineering Services
- b) 2nd reuse: -USD 75% of Contract Price for Engineering Services
- c) 3rd reuse: -USD 55% of Contract Price for Engineering Services

2.2 TAXES AND DUTIES

2.2.1 All designs and drawings related to the Supply of Equipment shall be despatched along with the Equipment and will be cleared through customs. In the event of shipment of designs and drawings related to the Supply of Equipment in this category is being made by the Contractor independent of the Equipment despatch, the invoice for related designs and drawings shall be of "nil" commercial value.

2.2.2 The country of origin of the Equipment and Commissioning Spares covered under this Agreement shall as designated by the Contractor.

(Note: The country of origin has to be submitted by the Contractor for checking, before signing of the Agreement).

The Contractor shall take Purchaser's prior approval for any change in the country of origin of Equipment.

2.2.3 The Contractor shall bear and pay all taxes, duties, charges or levies which may be assessed, imposed or levied upon the Equipment as well as the related designs and drawings or any income realised by him in connection with and in the execution of the Agreement by any country

or governmental agency thereof in which the Equipment as well as the related designs and drawings are produced or from which it is sold, despatched or shipped.

2.2.4 Customs Duty, Port Charges, Integrated Goods and Service Tax as per The Central Goods and Services Tax Act, 2017 levies in India shall be borne and paid by the Purchaser for clearance of supplied equipment under this Agreement.

2.2.5 Freight and insurance will be arranged and paid for by the Purchaser from F.O.B. Port of Shipment to the Plant site.

2.2.6 The Purchaser shall forward to the Contractor Tax certificate, if any showing the taxes paid by the purchaser in India in respect to the Contractual Payment made to the Contractor for supply of Equipment.

2.3 The net weight of each component of Equipment as submitted by the Contractor for various sections of the Technical Specification is guaranteed by the Contractor within a margin of $\pm 5\%$. In the event that the design weight for each section deviates by more or less than the above margin, the Contractor, during engineering work, shall inform the Purchaser of each deviation and the reason thereof with technical evidence of necessity for such deviation and deliveries of such items shall be effected only when such deviation is acceptable to the Purchaser.

Purchaser shall inform the Contractor his comments/acceptance of aforesaid deviation, if any, proposed by the Contractor, within two (2) weeks of receipt of Contractor's intimation to this effect by e-mail/fax. In order to establish to the Purchaser the correct weights of individual items, the Contractor shall clearly indicate in the individual packing list the net weights and gross weights of Equipment. However, the Contractor will ensure that the shortage/excess weight will not have any impact on performance of the Project and that should be communicated to the Purchaser. In this case Purchaser reserves the right to hold the progress payment till the date of receipt of communication from the Contractor on shortages / excess weight.

2.4 CONTRACT PERFORMANCE GUARANTEE BY THE CONTRACTOR

a) No later than thirty (30) days following the Contract Effective Date, the Contractor shall furnish the Purchaser an irrevocable and unconditional bank guarantee for five (05) percent of the Contract Price from an Indian Bank, acceptable by the Purchaser, in the format enclosed at Annexure II towards security for the fulfilment of its obligations under the Agreement;

b) The Contract Performance Guarantee shall remain valid till issuance of the PAC by the Purchaser;

c) The Contract Performance Guarantee shall not in any manner be construed as limiting the damages & liabilities of the Contractor.

SCHEDULE 3

COMPLETION SCHEDULE AND LIQUIDATED DAMAGES

3.1 COMPLETION SCHEDULE

3.1.1 The Contractor must deliver the Supply of Equipment:

- a) expeditiously;
- b) in accordance with the Contractor's work plan and work method statement, time schedule approved by the Purchaser, as amended from time to time, including (without in any way whatsoever limiting the foregoing or any other provision of this Agreement to the extent such provision is applicable to the time for completion of any part of the Work) in accordance with any Milestone dates;
- c) in accordance with any requirements of the Purchaser set out in this Agreement; and
- d) in accordance with any Directions properly issued by the Purchaser from time to time under this Agreement.

3.1.2 If any matter has delayed or changed the timing or is likely to delay or change the timing, of the performance of any activity, Milestone or work set out in this Agreement, the Contractor must:

- a) promptly but in any event not later than the period stated in Agreement (or if no period is stated within five (5) Days) after the first to occur of:
 - i) the Contractor becoming aware (or should reasonably have become aware) of the causation of the delay or change to the timing occurring; or
 - ii) the commencement of the delay or change to the timing,
- b) give written notice to the Purchaser stating that an event causing or likely to cause a delay or change to the timing has occurred, the cause of the delay or change to the timing, the extent or likely extent of the delay or change and how activities, Milestones or work are likely to be affected (if at all);
- c) not later than the period stated in Agreement (or if no period is stated within five (5) Days) after giving the notice, submit a written claim to the Purchaser including detailed particulars of the cause and extent of any delay up to the date of submitting such claim, how activities, Milestones or work have been affected, all other facts on which its claim for an extension of time is based and such other information as the Purchaser may request; and
- d) if the effects of the delay or change to the timing continue beyond the date of submitting the claim and the Contractor wishes to claim an extension of time in respect of any resulting further delay or change to the timing, submit a further written claim to the Purchaser containing the information every twenty-eight (28) Days after submitting the claim previous claims, until the end of the effects of the delay or change in timing.

3.1.3 The Contractor is not entitled to an extension of time unless the Contractor has provided a time schedule and strictly complied with all the requirements of Agreement and the delay is caused by any of the following:

- a) any Change in the Work as provided in Clause 19(Changes in the Work) hereof

b) any occurrence of Force Majeure as provided in Clause 22(Force Majeure) hereof

c) any suspension order given by the Purchaser under Clause 23.1(Suspension) hereof

d) The default by the Purchaser, if proved to be cause for delay in completion of the Project

If the Purchaser determines that the cause of the delay justifies an extension of time for completion of any activity, Milestone or work included in the time schedule provided in the Agreement, then subject to the Contractor having an entitlement to an extension of time, the Purchaser will grant the Contractor an extension of the time to achieve completion of the affected activities, Milestones and work. In granting any extension of time, the Purchaser shall have regard to any concurrent delay (and the extent of such concurrency) not due to Purchaser. The Purchaser will advise the Contractor of any extensions of time granted. However, the Contractor shall at all times use its reasonable efforts to minimise any delay in the performance of its obligations under the Contract.

3.1.4 Notwithstanding any other provision of this Agreement, the Contractor will not be entitled to an extension of time due to delay(s) caused by Contractor.

3.2 The delivery of the materials on F.O.B. basis to the Port of Shipment of the contractor's location, as listed in agreed Scope of Work in this Agreement, will be completed by the Contractor within a total of Thirty-Eight (38) months from Contract Effectiveness Date for both Refractories and Equipment from the Contract Effective Date. The Contractor shall be responsible for co-ordinated delivery of all Equipment under this Agreement and shall ensure sequential deliveries as per agreed schedule.

3.3 A time Schedule in the form of bar chart showing the time period required for various activities is Annexure X. Contractor will provide L4 schedule in Microsoft Project/Primavera P6 showing network diagram, critical path and Milestone activities within 30 Days of Contract Effective Date.

3.4 LIQUIDATED DAMAGES DUE TO DELAY

The contractor will prepare and submit L4 Schedule for review and approval by The Employer. The L4 Schedule shall contain Milestones and shall be tabulated hereunder as follows:

Sl. No.	Description of Milestones	Date of Completion
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If the Contractor fails to attain either "Completion of any of the Milestones" or "overall delivery completion period of this Agreement" due to reasons not attributable to the Employer, the Employer shall recover the amount of Liquidated Damages, but not by way of penalty, by making deductions from the Contractor's account or by encashment of Contractor's Bank Guarantees or by any other means as may be allowed under the contract and/or law, at the rate of 0.5% of the total Contract Price, excluding taxes & duties paid or payable to the Contractor, per week of delay or part thereof up to a maximum of 5% of the Contract Price.

3.5. LIQUIDATED DAMAGES FOR NON-FULFILMENT OF PERFORMANCE GUARANTEE PARAMETERS OF PROJECT

If, for reasons not attributable to the Purchaser, the performance guarantee parameters specified hereof in the Agreement are not met either in whole or in part, the Contractor shall at its cost and expense make such changes, modifications and / or additions to the Project or any part thereof as may be necessary to meet the performance guarantees parameters. The Contractor shall notify the Purchaser upon completion of the necessary changes, modifications and / or additions, and shall request the Purchaser to repeat the performance guarantee test (2nd test) so as to establish the performance guarantee parameters.

In case the performance guarantee parameters are not achieved either in whole or in part the Purchaser shall recover the amount of Liquidated Damages, but not by way of penalty, by making deductions from the Contractor's account or by encashment of Contractor's Bank Guarantees or by any other means as may be allowed under the contract and/or law, at the rates specified hereof for respective items, subject to a maximum of five(5) percent of the Contract Price, excluding taxes & duties in respect of the failure to meet the minimum level of Performance Guarantees in accordance with the provisions hereof.

The aggregate ceiling on Liquidated Damages due to delay in completion of the Project and for non-fulfilment of Performance Guarantee Parameters of the Project shall be limited to ten (10) percent of the Contract Price, excluding taxes and duties.

LD Table:

Sl No	Guarantee parameters	Guaranteed Value	Acceptable Tolerance	Remarks
	Liquidities damages	within tolerance limit		

3.6 If the results are beyond the tolerance limit (even for single guaranteed parameter as stipulated) even after repeated attempts as per clause 13.0 of schedule-6, then provision of clause 14 (Rejection of Defective Equipment) of the General conditions (Schedule-6) shall become applicable. However, Purchaser at his sole and absolute discretion may accept the Works subject to commercial settlement with the Contractor. In the event, the commercial settlement is not arrived at within ninety (90) days under this clause; the Purchaser shall have the right to reject the defective Equipment. The Purchaser however shall be under no

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obligation to initiate and/or enter into any settlement with the Contractor and can invoke Clause 14 of General Condition (Schedule -6) directly without initiating any negotiation with and/or advising Contractor for any commercial settlement.

3.7 Purchaser shall be entitled to recover liquidated damages from any money due or accruing to the Contractor under this or any other Contract with the Purchaser, failing which such amount shall be considered as debt due from the Contractor to the Purchaser.

SCHEDULE 4

TERMS OF PAYMENT

4.0 GENERAL

4.1 In accordance with the provisions of Schedule 2, the Purchaser shall pay the Contractor for the Supply of Equipment as broadly brought in the Agreement, on the basis of the Billing cum Shipping Schedule as per clause no. 5.1 of Schedule 5.

4.2 All payments shall be made as specified in Clause no. 4.10 hereunder, directly by the Purchaser to the Contractor unless otherwise provided in the Contract or agreed between the Parties.

4.3 The payments will be made in the currencies quoted by the Contractor and included in the Contract unless otherwise agreed to between the Parties.

4.4 All progress payments shall be regarded as payments by way of advance against the final payment only and not as payment for work completed and shall not preclude defective / imperfect / incomplete Works/ Supply of Equipment. It will not be considered as an admission by the Purchaser of the due performance of the Contract, or any part thereof by the Contractor nor shall it preclude, determine or affect in any way the powers of the Purchaser under these conditions or in any way vary or affect the Contract.

4.5 An advance payment of Ten percent (10%) of the Contract Price shall be paid by Purchaser to Contractor within thirty (30) days from the date on submission of:

- a) Invoice issued by Contractor in four (4) original copies
- b) Advance bank guarantee of equivalent amount, in purchaser's approved pro-forma as per Annexure I from an Indian bank approved by the Purchaser valid at least till completion of supplies and full adjustment of advance payment and shall be on reducing balance basis based on the progress of the Supply of Equipment.
- c) Contract performance bank guarantee of five (05) percent of the Contract Price in Purchaser's approved pro- as per Annexure II from an Indian bank approved by the purchaser valid till PAC.

4.6 Eighty percent (80 %) of the Contract Price with respect to each and every part shipment for Supply of Equipment as well as related designs

and drawings will be payable as per Billing Cum Shipping Schedule approved by the Purchaser and against presentation of following dispatch documents proving that the goods are delivered F.O.B. Port of Shipment:

- a) Full set (2) originals and two (2) copies of clean on Board Bill of Lading or airway bill or house bill of lading.
- b) Four (4) originals of invoice duly signed by the Contractor.
- c) One (1) original and three 3 copies of Certificate of country of origin issued by the Contractor.
- d) Two (2) sets of Packing lists duly signed by the Contractor; Packing list will be submitted by the Contractor container wise.
- e) Two (2) originals of Inspection Certificate, issued by the Purchaser or Two (2) originals of Inspection Certificate, issued by the Contractor along with Contractor declaration that test reports and reminder have been sent to Purchaser by e-mail and no response is given by the Purchaser as per the timelines mentioned below.

"Purchaser will respond within 15 days from the date of submission of all documents as per approved QAP. In case no response is given by Purchaser within 15 days of date submission of all documents, then a reminder will be given by Contractor at the end of 15 days. In case of no response by Purchaser within next 7 days of the reminder, the last reminder may be submitted in place of Inspection Certificate issued by Purchaser.

- f) Two (2) copies of the Dispatch Clearance Certificate (DCC) issued by the Purchaser as per the General Conditions for design, manufacture and supply of equipment.
- g) Two (2) originals and two (2) Copies of Certificate from the Contractor to the effect that contents in each case are neither more nor less than those entered in the invoice and packing list and quality of the goods is guaranteed as new and as per the relevant specification.
- h) Certificate from Contractor to the effect that immediately after shipment one complete set of non-negotiable shipping documents has been sent to TATA LIMITED, London and another complete set to the Clearing Agents: TM International Logistics Ltd. (TMILL), Kolkata, India, as per the terms of Schedule-5.
- i) Certificate issued by the Contractor stating that the wooden packing material has been treated to ISPM 15 or equivalent and IPPC special marking has been labelled on the wooden packing material.

For progress payments related to supply of Equipment against its delivery, the Contractor shall raise their Customs invoice corresponding to 100% of the order value of relevant supplied equipment.

4.7 Not Used.

4.8 Five percent (5%) of Contract Price as indicated under Clause 2.1.1 of Schedule -2 will be payable upon the issue of Provisional Acceptance Certificate of the plant as per the General Conditions (Schedule 6)

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- a) Four (4) originals of Invoice duly signed by the Contractor
- b) Four (4) copies of Provisional Acceptance certificate issued by the Purchaser

In case of delay in performance tests for reasons attributable to the Purchaser, payment for Provisional Acceptance Certificate shall be released as per Clause 13.9 of General Conditions (Schedule 6) and on submission of

- a) Four (4) originals of invoice duly signed by the Contractor
- b) Four (4) of Declaration issued by the Purchaser stating that the performance tests of the Project have been delayed.
- c) A Bank Guarantee, from an Indian Bank approved by Purchaser, of 5% of Contract Price valid for twelve (12) months or Extended PAC Period as applicable.

4.9 The last 5% of Contract Price as indicated under clause 2.1.1 of schedule -2 will be payable upon the issue of Final Acceptance Certificate as per the general conditions and on submission of

- a) Four (4) originals of Invoice duly signed by the Contractor.
- b) Four (4) copies of declaration issued by the Purchaser stating that the performance test of Project has not been delayed.
- c) Four (4) copies of Final Acceptance certificate issued by the Purchaser.

The payment of Final Acceptance Certificate (FAC) can be claimed along with the payment of Provisional Acceptance Certificate (PAC) subject to Contractor's submitting a Bank Guarantee, from an Indian Bank approved by Purchaser, of 5% of Contract Price valid for twelve (12) months counting from date of actual PAC or thirty (30) months from scheduled date of ICT, whichever is earlier.

4.10 MODE OF PAYMENT

4.10.1 The Payment as per Clauses 4.5, 4.7, 4.8, and 4.9 hereof will be effected by the Purchaser by electronic transfer within thirty (30) days of receipt of correct invoice and other documents as stipulated in respective clauses.

4.10.2 Payments as per clause 4.6 are payable within Thirty (30) days against presentation of the stipulated documents through an irrevocable revolving Letter of Credit as per the format under Annexure IX and to be opened by a first class bank in India in favour of the Contractor. The revolving Letter of Credit shall be subject to Uniform Customs and Practice for documentary Credits (2007 Revision) of the International Chamber of Commerce (ICC Publication No. 600).

The Letter of credit shall be opened within sixty (60) days from the date of receipt of Bank Guarantees (BGs).

4.10.3 In case the execution of the Agreement is not completed in time, the validity of the letters of credit shall be extended upon Contractor's request as mutually agreed. However, in case extension is

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due to reasons attributable to the Contractor, the relevant cost shall be borne by the Contractor. In case extension is due to reasons attributable to the Purchaser, the relevant cost shall be borne by the Purchaser.

4.11 The following additional documents shall be submitted for release of last payment under Clause 4.6 hereof and FAC payment:

- a) No Claim Certificate
- b) Any other documents, as required by Employer.

SCHEDULE 5

OTHER CONDITIONS

5.1 Not Used.

5.2 PACKING, PROTECTIVE PAINT, IDENTIFICATION AND MARKINGS

5.2.1 PACKING AND PROTECTIVE PAINTING

5.2.1.1 The Contractor confirms that the Plant and Equipment shall be packed in accordance with the norms followed internationally so as to protect the contents from damage during transit from point of manufacture until its arrival at Tata Steel, Kalinga Nagar Jharkhand Project, under conditions which may involve multiple handling, ocean shipment, storage under tropical conditions as well as subsequent movement by road transport in India, exposure to heat, moisture, rain etc. and possibility of pilferage. Packing shall be of quality suitable for sea transport and for storage in tropical conditions. However, special precautions out-lined in clauses below shall be followed by the Contractor.

5.2.1.2 SPECIAL PRECAUTIONS

a) The Contractor shall properly clean the Plant and Equipment and apply one coat of rust inhibitor and a shop coat of paint as per Purchaser's General Specification for Painting.

b) Heavy machinery shall be mounted and bolted to skids which shall be of sufficient strength to support and prevent distortion to the machine. All openings of pipes, large valves and machinery must be protected by suitable covers or plugs and machined threads must be covered by caps to protect against damage in transit.

c) All electrical equipment, in addition to normal packing, shall be wrapped in polyethylene or polypropylene plastic sheets for protection against humidity and openings in electrical equipment shall be sealed with waterproof tapes. Further, suitable number of packets of silica gel or other suitable dehydrating agent shall be used. Protective grease-proof paper shall be inserted between the brushes and armature of motors and generators.

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d) Fragile items shall be wrapped in crepe-cellulose wadding or some equally efficient cushioning material and stuffed in excelsior and packed in substantial covers with special precaution against risk of breakage.

e) Separate individual package shall be prepared for following items and shall have marking corresponding to the equipment/item:

- o Foundation bolts, embedment#s etc.
- o Commissioning Spares.
- o Initial fills
- o Special tools and tackles for repair and maintenance.
- o Refractory and lining materials.
- o Spare parts for first two (2) years operation, if ordered
- o Accessories

f) Each equipment or parts thereof shall, when shipped or otherwise dispatched, be tagged with reference to the assembly drawings and corresponding part numbers.

g) Notwithstanding anything stated above, the Contractor shall be solely responsible for loss, damage or deterioration to the Plant and equipment, materials caused by faulty, defective or insecure packing, or due to improper or insufficient protective measures or due to non-compliance of Packing norms as well as packing conditions stipulated by carriers.

h) All primer and final coats of paints and colours shall be in accordance with the Purchaser's General Specifications for Painting included in the Contract.

i) All assembly drawings and despatchable unit drawings shall be marked with the centre of gravity (CG).

Contractor shall ensure that the all shipments are properly marked with CG, so as to ensure safety of the consignments during transit and handling.

Each equipment or parts thereof shall, when despatched, be tagged with reference to the assembly drawings and corresponding part numbers.

j) Notwithstanding anything stated above, the Contractor shall be solely responsible for loss, damage or deterioration to the plant and equipment, materials caused by faulty, defective or insecure packing, or due to improper or insufficient protective measures or due to non-compliance of packing norms as well as packing conditions stipulated by carriers.

5.2.2 MARKING

a) Marking in English block letters shall be clearly stenciled on the packages with good quality non-fading paint in characters sufficiently large as the size of the package will permit.

b) One and the same set of marking should appear on all four sides of the packages. No marking need be made on top and bottom. The following markings shall appear prominently on all the four sides of the packages with 75 mm high letters.

TATA STEEL LTD.,
JAMSHEDPUR Project
Jharkhand, India
Contract No.
Package No.

Brief Description: Equipment/Accessories/Commissioning Spares/Initial
Fills (to mark as applicable)

Underneath the above main markings, other particulars as under,
relevant to the order should be marked on the packages in smaller
letters:

Length ####.
Width ####.
Height ####.
Net weight ####.
Gross weight ####.
Made in ####.
Other Details as required by the Purchaser##.

The above details shall also be given in the Bill of Lading /Airway
Bill.

c) Apart from the above markings, cautionary symbols, such as "FRAGILE"
"HANDLE WITH CARE" "DO NOT DROP" "KEEP IN DRY PLACE" "TOP - DO NOT
OVERTURN" etc. should also be painted as may be appropriate to the
contents of package, on all four sides.

d) In the case of bundles or metal base, proper markings, as specified
hereinabove, are to be placed on metal tags which are to be securely
attached to the bundle or base as conspicuously as possible.

e) Packages must be marked on all four sides with arrows pointing to the
TOP.

f) When required due to length of unbalanced weight, the container shall
have locations of cables or hooks and the centre of balance indicated by
proper markings.

g) Fabricated sections of structures and Equipment must have their
respective piece marks permanently stamped into the piece to a depth of
not less than one mm, and the stamped area painted with rust preventive
paint to a radial distance of fifty (50) mm on the surrounding area.

5.2.3 PACKING LISTS

a) Each package shall have a detailed packing list stating specifically
the name of the Contractor, number and date of the Contract, the name of
the Purchaser and the detailed list of contents packed within the
package indicating the nomenclature of the equipment and a schedule of
parts for each complete equipment giving the part numbers with reference
to the assembly drawings and the quantity of each part, drawing numbers
and tag numbers. A duplicate copy of the packing list shall be put in a
waterproof envelope and fastened securely to the outside of the package
as well as to unpacked pieces or bundles. Packing details showing the
net weight, gross weight, length, width and height and cubic volumes as
well as detailed contents of each package separately is absolutely
necessary. Packages shall have running serial numbers prepared in

required sequence; which, for Supplied equipment, shall be shown in the Bill of Lading also.

b) Submission of Container Wise Packing List

At the time of dispatch, Packing Lists shall be prepared and submitted by the Contractor container wise to enable the Purchaser to verify quantity, type of material contained, number of packages, identifying a specific package etc.

5.3 All export or other licenses or permits which may be required by the laws or regulations of the country in which any Equipment covered by this Agreement is produced or sold or dispatched from will be obtained by the Contractor at its own expense. If any such license is required by the Purchaser, then the Contractor will deliver that license to the Purchaser, or a copy thereof, to permit export and delivery and/or electronic transmission. This will be a condition precedent to the release of any payment by the Purchaser, as per Schedule 4 (TERMS OF PAYMENT) of the Agreement.

5.3 MARINE AND INLAND TRANSPORTATION, MARINE INSURANCE

5.3.1 The Contractor shall arrange for adequate insurance cover until the Equipment and Spare Parts are loaded on board the ship as per INCOTERMS 2010.

Marine transportation as well as inland transportation (from Indian port of unloading to Site) of Supply of Equipment under this Agreement will be in the Purchaser's scope. The choice of containerization or break bulk shall rest with the Purchaser. In the event of containerization of the goods, all cost involved in containerisation, stowing, lashing, and dunnage and fixing on board vessel, etc. and the terminal charges shall be to the Contractor's account up to FOB/FCA delivery.

The Purchaser will be responsible for arranging marine insurance at his expenses for all Supplied Equipment beyond FOB Port of Shipment as per INCOTERMS, 2010, for safe delivery of the same up to Purchaser's warehouse, on warehouse to warehouse basis; the Purchaser's warehouse being the INCOMING MATERIALS SECTION, located inside Site, Jamshedpur. The Contractor shall provide to the Purchaser or his authorised representative sufficiently in advance all necessary documentation to enable the Purchaser to take marine insurance and all other information required by the Purchaser for properly administering the marine insurance. Additional cost and expenses incurred by the Purchaser owing to Contractor's not complying with this provision shall be charged to the Contractor.

5.3.2 TATA LIMITED, London is the buying agent and is authorised to liaise on behalf of the Purchaser. For the purpose of arranging marine insurance, the details of consignment along with its value shall be intimated to TATA LIMITED, London by the Contractor by telefax/e-mail immediately after the goods are ready for dispatch. The telefax/e-mail shall be sent to TATA LIMITED, London as per the specimen given below:

TATA LIMITED Telephone No.: 0044-20 7235 8281
18 GROSVENOR PLACE Fax No. 0044-20 7235 8727
LONDON SW1X 7HS, E mail ID: orders@tata.co.uk

REF. OUR AGREEMENT DATED..... FOR SUPPLY OF
EQUIPMENT AND COMMISSIONING ITEMS FOR ##### PLANT (Name of Project)
AT TATA STEEL, JAMSHEDPUR.

(.....) NO. OF CASES, WEIGHT.....KGS (NET),KGS
(GROSS), DIMENSION OF PACKAGE.....,
VALUE....., SHIPMENT
BY.....(NAME OF VESSEL), ON(DATE),
FROM..... PORT TOPORT (.)

5.4 CUSTOMS CLEARANCE

The responsibility of the Purchaser includes arranging customs
clearance for the import of the Equipment at his own cost at the Indian
Port.

5.5 SHIPPING

5.5.1 BILLING CUM SHIPPING SCHEDULE

The Contractor will prepare and submit Billing cum Shipping Schedule
to Purchaser for review and approval. The Billing cum Shipping Schedule
will inter-alia includes all the L3 level activities mentioned in the
approved L4 schedule. The Contractor will prepare and furnish to the
Purchaser, within four (4) weeks from the Contract Effective date, a
Billing Schedule indicating the break-up of Contract price for delivery
of Supply of Equipment. The Employer shall approve or return with
comments to the Contractor within fourteen (14) working days from the
date of submission Billing Schedule by the Contractor.

Besides hard copies, the Billing cum Shipping Schedule will be
submitted by the Contractor in soft copies to the Purchaser in text/
Microsoft excel format for approval. After finalization and approval of
the Billing cum Shipping Schedule, soft copy of the same in text format
to be submitted by the Contractor for incorporating in Purchaser's "SAP"
system.

The Billing cum Shipping Schedule shall be as per following format:

Contract No. and Date:
Subject:
Supplier:
Total Contract value:
Delivery commencement date:
Delivery completion date:

1 2 3 4 5 6 7

Sl. No. Item Description Quantity Unit of measurement Gross Weight in Kg
Net Weight in Kg Country of Origin

8 9 10 11 12

Dimension in mm
Length of package Weight of package Height of package Schedule date for
FOB delivery Price

Note:

- Item requiring break bulk equipment would be prefixed (*)
- Item description mentioned above should be reproduced identically, without any change, in the invoice. Item description should be identical in each document.

This schedule shall take into consideration the Supply of Equipment in the logical sequence required. The Contractor shall promptly give written notice to the Purchaser of any anticipated delay in maintaining the said schedule, stating the reasons therefore.

The description and the amount of the equipment/items in the Invoices shall exactly match with the details provided in the Billing cum Shipping Schedule.

5.5.2 SHIPPING DETAILS

a) The Contractor shall ensure that the number of shipment units are kept as minimum as possible. The expected number of shipments should be shared with the purchaser within 4 months of the Contract Effective Date. In case the number of shipment units increases for the act of negligence and omission by the contractor, then the freight charges is to be recovered from the Contractor.

b) Shipping arrangements will be made on behalf of the Purchaser by TATA LIMITED, London.

c) All Equipment shall be considered for shipping only upon issuance of Despatch Clearance Certificate as per clause 5.10.11 hereof by the Purchaser or his authorised representative and despatch instructions given by TATA LIMITED, London to the Contractor, upon the receipt of which the plant and equipment shall be packed up forthwith and made ready for shipment.

d) For reserving shipping space and making other necessary arrangements, the Contractor shall give 45 days# advance notice of expected date of readiness for shipment to TATA LIMITED, London provided the Equipment and materials are ready for shipment. Contractor to include in his notice of readiness for shipping, pro forma packing list, Contractor#s pro forma invoice, approximate dimension of package, country of origin, gross weight, net weight, Agreement No., item No. and port of shipment, etc. Confirmation or otherwise of shipping arrangements shall be intimated to the Contractor by TATA LIMITED, London within fifteen (15) days of receipt of Contractor#s notice of readiness for shipping.

e) Submission of Container Wise Packing List:

At the time of despatch, detailed Packing Lists shall be prepared and submitted by the Contractor container wise to enable the Purchaser to verify quantity, type of material contained, number of packages, identifying a specific package etc.

f) Purchaser, at their sole discretion, may decide to air freight the Equipment/Items. In such case, the delivery mode "FOB Port of Shipment" shall be changed as "FCA Airport of despatch".

g) As per statutory norms of packaging requirement, all consignments being imported into India by air or sea require to be accompanied by a marked with ISPM-15 or equivalent and IPPC Special marking from the

country of origin if articles have been packed with packaging materials of wooden origin used for packing which include hay, straw, wood savings, wood chips, saw dust, wood waste, wooden pallets, Dunnage mats, wooden packages, coir pith, peat or sphagnum moss etc. If required by the Purchaser, the Contractor shall issue a Certificate stating, that the wooden packing material has been treated to ISPM-15 or equivalent.

h) The Contractor has noted that for progress payments related to supply of Equipment/Items against its delivery, the Contractor need to raise their Customs invoice corresponding to 100% of the order value of relevant Equipment/Items shipped.

5.6 SHIPPING DOCUMENTS

The Contractor shall furnish following shipping documents:

- i. Set of Clean bill of lading or airways bill or house bill of lading as per Incoterms 2010 in case of delay in arranging shipping space 6 non-negotiable copies
- ii. Invoice duly signed by the Contractor 1 original, 5 copies
- iii. Certificate of country of origin issued by respective Chamber of Commerce / preferential certificate of origin 1 original, 1 copy
- iv. Packing list (to be furnished container wise and package wise) 1 original, 5 copies
- v. Copy of Inspection or Test Certificate issued by the Purchaser or Two (2) originals of Inspection Certificate, issued by the Contractor along with Contractor declaration that test reports and reminder have been sent to Purchaser by e-mail and no response is given by the Purchaser as per agreed timeline. 1 original, 5 copies
- vi. Dispatch Clearance Certificate or request letter along with undertaking of Contractor 1 original, 5 copies
- vii. Certificate from the Contractor to the effect that contents in each case are neither more nor less than those entered in the invoice and packing list and quality of goods is guaranteed as new and as per relevant specifications 1 original, 1 copy
- viii. Declaration by the Contractor that the "Article mentioned in the invoice / packing list have not been packed with the packaging materials treated to ISPM-15 or equivalent and IPPC special marking on the wooden packaging material. 1 original, 1 copy
- ix. Photographs / Catalogues and / or manuals of Equipment 1 original, 1 copy
- x. Copy of guarantee certificate issued by Contractor 1 copy

One complete set of above non-negotiable documents should be sent to:

TATA LIMITED Telephone No.: 020 7235 8281
18 GROSVENOR PLACE Fax No. 020 7235 6584
LONDON SW1X 7HS
E mail ID: orders@tata.co.uk

And another complete non-negotiable set to be sent to:

TM International Logistics Ltd. (TMILL),
Tata Centre, 4th Floor
43, Chowringhee Road, Kolkata # 700 071
Telefax No. (0091) 33 2889553

TMILL is the clearing agent for Supplied Equipment/Items.

For the Purchaser to submit the documents at the clearing port, an additional set of complete shipping documents as referred to above shall be made available by the Contractor to the Purchaser at least fifteen (15) days in advance of the arrival of the ship at the port of unloading. Any expense incurred by the Purchaser due to wharf age etc. on account of Contractor's delay to fulfill the aforesaid condition shall be borne and paid by the Contractor.

5.7 Contractor agrees and confirms to submit all Designs and Drawings as per Technical Specification.

Designs/drawings/documents shall be prepared by the Contractor on SP3D/Solid works/AUTOCAD Release 14/MS Office 97 compatible format with proper reference numbers for easy co-relation. Soft copies shall be furnished in PDF format and in DWG format if necessary.

5.8 MAKE OF EQUIPMENT

Make (brand) of any equipment/item to be supplied by the Contractor shall be as stipulated in the Technical Specification. If not so stipulated, makes of those equipment/items shall be as per the Standard Vendor List of Purchaser.

5.9 BRAND NAME OF PRODUCT

Brand names (trade marks) mentioned in the Technical Procurement Specification are for the purpose of establishing the type and quality of products to be used. Competitive products of equal quality and function may be substituted, from approved vendor list, subsequent to approval by the Purchaser/Engineer. In case the item to be substituted is not listed in the approved vendor list, the substituted brand shall be mutually agreed.

All such substitute products shall be used or installed in accordance with the manufacturer's specifications/instructions.

5.10 INSPECTION AND TESTS DURING MANUFACTURE

5.10.1 QUALITY ASSURANCE PLAN (QAP)

The QAP containing proposed inspection and test procedure together with details of the tests to be conducted by the Contractor including the proposed time schedule to conduct all these tests shall be submitted by the Contractor in enclosed formats, provided under Annexure VII (INSPECTION AND TEST PROCEDURES), within three (03) month from the Contract Effective Date, or within half the contractual delivery period whichever is earlier

5.10.2 INSPECTION AT CONTRACTOR'S AND/OR AT HIS SUB-CONTRACTOR'S PREMISES

The Purchaser and/or his authorised representative shall have the right, upon giving reasonable notice, of inspecting and testing the Contract work or any part thereof including all Plant and equipment, its components, sub-assemblies and assemblies etc. at all times or at any time during the manufacture at Contractor's and/or at his Sub-contractor's premises and the Contractor, on demand from the Purchaser and/or his authorised representative and in its presence,

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shall carry out tests in accordance with the agreed inspection and test procedure together with details of the tests to be conducted (Quality Assurance Plan or QAP) as given below in an appropriate manner free of charge to the Purchaser. However, the Purchaser and/or his authorised representative shall bear their own travel, accommodation and related expenses. The Contractor shall also carry out other tests as may be required to be carried out by the Contractor under the Contract. All tests shall be carried out at no extra cost to the Purchaser.

Such tests shall be carried out generally to establish among others the following:

- Quality of raw materials used for manufacture/ fabrication.
 - Quality of workmanship.
 - Dimensional accuracy of the manufactured parts.
 - Functional tests to establish the suitability of design and manufacture and to prove their reliability under working conditions.
- Series produced catalogued engineering goods such as valves, screws, limit switches etc., are excluded but test certificates as available will be submitted to the Purchaser and/or his authorised representative by Contractor.

5.10.3 CONTRACTOR TO PERFORM ALL TESTS

The Contractor shall be responsible to perform any and all tests and inspections, as specified by the Contractor's Test and Inspection Plan/ QAP and agreed by Purchaser, as part of Contractor's obligations under the Contract. The Contractor shall carry out internal inspection of the work for which he is responsible to ensure proper performance and satisfy himself before giving the inspection call to the Purchaser/his authorised representative. To this end, he shall submit to the Purchaser/his authorised representative all pre-inspection forms, internal inspection reports, post inspection reports, test reports and such other documentation in such details as stipulated in QAP.

Should the Contractor himself not be in a position to carry out the tests, he shall, on the Purchaser's and/or his authorised representative's demand, prepare specimens or samples and send as well as test them at his own cost at such testing stations as the Purchaser and/or his authorised representative may specify. Should a part of the Plant and Equipment be not manufactured on the Contractor's own premises but on others' premises, the Contractor shall likewise obtain permission from the sub-contractor for the Purchaser and/or his authorised representative to inspect and test the Work as if the said Plant and Equipment were being manufactured on the Contractor's premises.

Prior to testing, contractor shall submit safety procedures associated with onsite testing for review and acceptance by the purchaser.

5.10.4 CONTRACTOR TO GIVE NOTICE

The Contractor shall submit inspection calls per the format provided under Annexure VIII (FORM OF INSPECTION CALL), enclosing all documents as per the agreed Inspection & Test Procedure to give the Purchaser/his authorised representative with a minimum of thirty (30) days' notice of any equipment or material being ready for inspection and testing,

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specifying the period likely to be required for such inspection and testing, The Purchaser/his authorised representative shall, (unless the inspection or test is voluntarily waived), will give fifteen (15) days' prior notice in writing to the Contractor and attend at the Contractor's or sub-contractor's premises (as the case may be) for the Equipment/items as per agreed Inspection and Test Procedure and inspect and/or witness the testing, as soon as possible in a period, normally of not more than ten (10) days, from the Contractor's proposed date or at a date jointly agreed by the Purchaser or his authorised representative and the Contractor.

Failing the aforesaid visit by the Purchaser/his authorised representative, the Contractor may proceed with the inspection and/or tests and shall forthwith forward to the Purchaser/his authorised representative duly certified copies of the inspection and test reports. In cases where the Purchaser/his authorised representative is requested to carry out inspection when in fact the equipment or material is not ready for inspection and testing, the cost of such visits, including incidental expenses, shall be to the Contractor's account. The Purchaser reserves the right to waive any or all inspection pertaining to any equipment/item. However, this shall not in any way relieve the Contractor for due fulfillment of his contractual obligations regarding quality, workmanship etc.

5.10.5 LIST OF COMPONENTS, SUB-ASSEMBLIES AND ASSEMBLIES

The Contractor shall also furnish a list of various components, sub-assemblies and assemblies which the Contractor proposes to put up against the Plant and Equipment for inspection. The Purchaser/his authorised representative shall have the right to make modifications in this list to ensure that the minimum amount of assembly work is done at equipment location, but if such changes subsequent to agreed lists affect the Contractor's cost, or change the Scope of Work per the Technical Specification, or change the delivery schedule, the Contractor reserves the right for corresponding changes to be made to the contract which shall be mutually discussed and agreed. The Contractor, particularly before any assembly, shall notify the Purchaser and/or his authorised representative in an appropriate manner in order that inspection or test can be carried out as may be required to ascertain, without prejudice to the Contractor's liability, whether the materials and/or Equipment are in conformity with the requirements of the Contract.

5.10.6 ASSEMBLY AT SHOP

On the completion of shop fabrication, the Contractor shall assemble in his shop all fabricated and procured parts into sub-assemblies and complete assemblies subject to inspection and testing as aforesaid to ensure proper fitment, unless otherwise directed. All parts shall be match-marked by the Contractor. Wherever the complete assembly is not possible after certain extent, the same should be discussed with Purchaser and further course of action be mutually agreed.

5.10.7 DOCUMENTARY EVIDENCE AND RADIOGRAPHY TESTS

The Contractor, on being so requested, shall furnish documentary evidence to the Purchaser and/or his authorised representative to the effect that the materials used shall meet the requirements of the Contract and good engineering practice. With respect to materials used

for the fabrication of the equipment, such as, structural steel, mild steel, cast iron, cast steel etc., the Contractor shall submit to the Purchaser and/or his authorised representative, at the time of inspection, the requisite test certificates along with specimens and test pieces on which tests were carried out by the original manufacturer. With respect to large castings, forging, butt-welding etc., the Contractor shall carry out the necessary radiography, ultrasonic and dye-penetrant tests etc. For bought-out items, the manufacturer's test certificates shall be submitted by the Contractor. Wherever samples and specimens are submitted by the Contractor to the Purchaser/his authorised representative to show the quality of the material used, such samples shall become the property of the Purchaser.

5.10.8 EXISTENCE OF HIDDEN DEFECTS

If the Purchaser/his authorised representative have reasons to suspect the existence of hidden defects due to faulty materials and/or workmanship at manufacturer's works, he will ask the Contractor for removal and rebuilding of the doubtful parts of the Work or for carrying out additional tests as required.

5.10.9 MATERIALS AND SERVICES FOR CONDUCTING THE TESTS

In all cases whether at the premises of the Contractor or of any sub-contractor, the Contractor shall provide data/information/documents, free of charge to the Purchaser/his authorised representative, with respect to labour, materials, electricity, fuel, water, stores, apparatus, instruments, consumables, specifications, approved general arrangement and shop drawings, catalogues, inspection and test reports and performance data, including efficiency and characteristic curves and other pertinent information as may be required, to carry out such inspection and/or tests of the Plant and Equipment in accordance with the Contract and shall give all facilities to the Purchaser/his authorised representative in this connection.

5.10.10 REJECTION AFTER INSPECTION

The Purchaser/his authorised representative shall, on giving written notice to the Contractor setting out the grounds of objection which he may have witnessed or recorded in respect of the Work, be at liberty to reject, on the basis of the said objection, all or any Plant and Equipment and/or workmanship which do not fulfill the requirements of the Contract. Inspection, examination or testing carried out by the Purchaser and/or his authorised representative and subsequent acceptance thereof which later proves to be defective or which is rejected, shall not in any way relieve the Contractor from guarantees/warranties, commitments and obligations which it undertakes under the Contract. The Contractor shall be solely responsible for the accuracy, quality and completeness of his Work and supply.

5.10.11 DISPATCH CLEARANCE CERTIFICATE

a) The Purchaser/his authorised representative shall issue a Dispatch clearance certificate (DCC), within fifteen (15) days from the date of submission of documents for issuance of DCC. While applying for DCC, the Contractor shall list all parts, sub-assemblies and assemblies and shall indicate all inspections and tests performed on them during manufacture, with duly certified copies of inspection and test reports. The Contractor shall also provide photographs of the consignment while

applying for DCC to the Purchaser.

b) If due to any reason whatsoever the tests were not witnessed by the Purchaser/his authorised representative, the Inspection Certificate and the Dispatch clearance certificate (DCC) may be issued by the Purchaser within fifteen (15) days after the receipt of the inspection and test reports from the Contractor, provided such inspection and test reports are in compliance with agreed Inspection and Test Procedure..

c) No Equipment shall be shipped or otherwise dispatched before the Dispatch Clearance Certificate (DCC) has been issued by the Purchaser/his authorised representative. The issuance of the Dispatch clearance certificate (DCC) shall not bind the Purchaser/his authorised representative to accept the Plant and Equipment.

5.11.0 FOLLOW UP AND EXPEDITING OF MANUFACTURING ACTIVITIES

To follow up and expedite manufacturing activities, the Purchaser and/or his authorised representative shall have the right to visit all manufacturing premises of the Contractor or his Sub-contractors to ascertain progress of manufacturing of Plant and Equipment and accessories as per the details reported by the Contractor in his status reports/periodic detailed reports on manufacturing. Contractor's status report will indicate the progress of manufacturing vis-à-vis requirements as per the agreed manufacturing programme. Delays, if any, in manufacturing will be identified in the status report by the Contractor together with suggested remedial measures and action plan for meeting the schedule. The Contractor shall provide all necessary assistance to the Purchaser and/or his authorised representative to visit manufacturer's premises and conduct reviewing of status of manufacture and collect information thereof.

5.12 REPLACEMENT OF UNSERVICEABLE MATERIALS

If any supplies perishes or becomes unserviceable, including loss or damage in transit, due to reasons not attributable to the Purchaser, the Contractor shall repair or replace at the option of the Purchaser, such parts without delay at Contractor's account.

If any supplies perishes or becomes unserviceable, including loss or damage in transit, due to reasons not attributable to the Contractor, the Contractor shall repair or replace on request of the Purchaser, such parts without delay at Purchaser's account.

5.13 INFORMATION FOR OVER DIMENSIONED CONSIGNMENT

Contractor shall submit to the Purchaser, within three (3) months before delivery Date, information concerning Over Dimensioned Consignment (ODC) (more than 10 m x 2.25 m x 2.25 m, any of the dimensions occurring singly or severally) and specific special requirement of transportation (marine as well as inland) for Purchaser's making necessary arrangement.

5.14 OPEN BOX INSPECTION

The Purchaser shall perform open box inspection of Equipment / Material / Item at site. The Purchaser will inform the Contractor the date of open box inspection, fifteen (15) days in advance. The Contractor must witness such open box inspection. The Contractor shall promptly replace any short supply / damaged / defective equipment / material /

items at the Contractor's cost. The Contractor shall abide by the decisions and orders of the Purchaser with regard to any such short supply / damage/ defect. If Contractor shall not witness the open box inspection within 15 days from such intimation, then the Contractor confirms that Purchaser's declaration regarding such short supply/ damaged/ defective equipment/ material / items shall be final and binding on Contractor.

SCHEDULE 6

GENERAL CONDITIONS OF CONTRACT

1.0 CONTRACT & INTERPRETATION

1.1 The following words and expressions shall have the meanings hereby assigned to them:

"Approval of the Purchaser or Engineer" means the written approval of the Purchaser or Engineer of a document, a drawing or other particulars or matters, on which approval has been requested, in relation to the Agreement.

"Contract" / "Agreement" means the Contract Agreement entered into between the Purchaser and the Contractor, together with the Contract Documents referred to therein; they shall constitute the Contract, and the term "the Contract" shall in all such documents be construed accordingly.

"Contract Documents" means the documents listed in Article 4 (Contract Documents) of the Contract Agreement (including any amendments thereto).

"Contractor/Supplier" means the person(s) whose bid to perform the Contract has been accepted by the Purchaser and is named as such in the Contract Agreement, and includes the legal successors or permitted assigns of the Contractor. In case Contract is with Consortium of two or more members then the Contractor shall mean one or more members of Consortium as the case may be.

"Contract Price" means the sum specified in Clause no 2.1.1 of Schedule 2 (Contract Price) of the Contract Agreement, subject to such additions and adjustments thereto or deductions therefrom, as may be made pursuant to the Contract.

"Contractor's Representative" means any person nominated by the Contractor and approved by the Employer in the manner provided in Sub-Clause 7.7 (Contractor's Representative) hereof to perform the duties delegated by the Contractor. For site work Contractor's Representative shall also mean the representative of Sub-Contractors and Sub-Contractor's Sub-Contractors.

"Day" means calendar day of the Gregorian Calendar.

"Design & Drawing" shall mean designs and drawings required to be submitted by the Contractor as per the Technical Specification (TS) or where not specified in TS then in accordance with good engineering / industrial practices and shall include any other documents, manuals, schedules, specifications, data, detail calculations, bill of materials, etc. to be submitted by the Contractor, as required for the performance

of the Agreement.

"Document" includes calculations, analyses, reports, records, data, drawings, plans, diagrams, specifications, standards, codes, schedules, manuals, programs, descriptions and other documents and includes any form of storage of information or images, whether visible to the eye or not, models, samples and computer software.

"Direction" means any agreement, approval, authorisation, certificate, decision, demand, determination, direction, explanation, instruction, notice, notification, order, permission, rejection, request or requirement which the Purchaser may make, give or issue pursuant to this Agreement.

"Effective Date" is 18th March 2022.

"Engineer" means the person(s) named as such in SCC to perform the duties delegated by the Purchaser.

"Final Acceptance" means the acceptance by the Purchaser of the Project which certifies the Contractor's fulfillment of the Contract in all respect.

"Final Acceptance Certificate" is the Certificate to be issued by the Purchaser as per Clause 8 hereof.

"Good Industry Practices" means at the reference time, the then recognized methods and practices in the steel industry that would reasonably be expected from experienced and competent contractor under conditions comparable to those applicable to the Project.

"Guarantee Period" means the period of validity of the guarantees given by the Contractor commencing from the date of issue of PAC of the Project, during which the Contractor is responsible for defects with respect to the Project as provided in Clause 8(Guarantee Period) hereof.

"GCC" means the General Conditions of Contract hereof.

"Inspector" / "Inspecting Engineer" shall mean any person or firm nominated by or on behalf of the Employer or his duly authorised agent to inspect equipment, materials, supplies or work under the Contract.

"Integrated Cold Test (ICT)" of the Project means that the Project have been completed operationally and structurally and put in a tight and clean condition, and that all work in respect of Pre-commissioning of the Project have been completed; in other words, that the Project are fit for Start-up & Commissioning.

"ICT Certificate" means the Certificate to be issued by the Purchaser on successful completion of Integrated Cold Tests.

"Milestone" means any event or any date for completion of an activity identified as a milestone in Work Plan and /or Work Method Statement and / or time schedule.

"Month" means calendar month of the Gregorian Calendar.

"Plant and Equipment" / "Equipment" / "Machinery" / "Plant" means permanent plant, equipment, machinery and things of all kinds to be

designed and supplied for the Project by the Contractor under the Contract.

"Project" means the works inter-alia specified in Technical Specification, Contract documents to be carried out by the Contractor under the Contract.

"Provisional Acceptance Test (PAT)" means the test(s) specified in the Technical Specifications to be carried out to ascertain whether the Project are able to attain the Performance Guarantees specified in the Technical Specifications in accordance with the provisions of Clause 13 (Performance Guarantee Test) hereof.

"Provisional Acceptance Certificate (PAC)" is the Certificate to be issued by the Purchaser as per Clause 13 hereof.

"Purchaser" means TATA STEEL LIMITED, an existing public limited company within the meaning of the Companies Act 2013 and having its registered office at 24 Homi Modi Street, Fort, Mumbai 400 001, India and includes the legal successors or permitted assigns of the Purchaser.

"SCC" means the Special Conditions of Contract.

"Technical Specifications" mean the technical specifications including general specifications therein, schedules, detailed designs, statements of technical data, performance characteristics value and all other particulars mentioned directly/referred to or implied in the Contract.

"Tata Limited, London" shall mean a company formed under the United Kingdom Companies Act having its registered office at 18, Grosvenor Place, London SW1X 7HS who, inter-alia, acts as the authorised Buying Agent, and as authorised signatory of the Purchaser.

"TKM Overseas Transport (Europe) GmbH" The terms "TKM Overseas Transport (Europe) GmbH" and "TKM Global GmbH" shall mean a company formed under the laws of Germany, having its registered office at Spalding Strasse, 210, D20097, Hamburg, Germany who, inter-alia, acts as the authorised Shipping Agent, and as authorised signatory of the Purchaser.

"TM International Logistics Ltd. (TMILL)" shall mean a company formed under the Indian Companies Act having its registered office at Tata Centre, 4th Floor, 43, Chowringhee Road, Kolkata # 700 071 who, inter-alia, acts as the authorised clearing agent for supplied Equipment/Items, and as authorised signatory of the Purchaser.

"Tests" include all test or tests made, without releasing the Contractor of its liability, as may be considered necessary by the Purchaser or Engineer or any other person appointed by Purchaser, in order to ascertain the quality and efficiency of the contract Work or parts thereof and performance of the plant and equipment as well as material tests in particular.

"Time for Completion" / "Completion Schedule" / "Delivery Schedule" / "Time Schedule" means the time specified in Schedule 3 and Annexure X within which Completion of the Project as a whole (or of a part of the Project where a separate Time for Completion of such part has been prescribed) is to be attained in accordance with the stipulations made in the Contract Agreement and the relevant provisions of the Contract.

"Site" means the land and other places upon which the Project are to be installed, and such other land or places as may be specified in the Contract as forming part of the Site.

"L1, L2, L3, L4 LEVELS IN SCHEDULE" means

"Work" means all or any part of the materials, equipment, drawings, documents and other services required for the design, supply, execution, completion and guaranteeing of the work which is specifically required by the Contract or is required in connection with such services and such materials and which is within the scope of the Contract and not specifically excluded by the Contract within the battery limits as per the Technical Specification.

2.0 Subject to Article 1.4(Order of Precedence) of the Contract Agreement, all documents forming part of the Contract (and parts thereof) are intended to be correlative, complementary and mutually explanatory. The Contract shall be read as a whole.

2.1 LANGUAGE

All correspondence and communications to be given, and all other documentation to be prepared and supplied under the Contract shall be written in English, and the Contract shall be construed and interpreted in accordance with English language.

2.2 INTERPRETATION

The singular shall include the plural and the plural the singular, except where the context otherwise requires.

References to numbered clauses and schedules are references to the relevant clause in or schedule to this Agreement.

Reference in any schedule to this Agreement to numbered paragraphs relate to the numbered paragraphs of that schedule;

Any obligation on any Party not to do or to omit anything is to include an obligation not to allow that thing to be done or omission to be done;

Any reference to an enactment includes reference to that enactment as amended or replaced from time to time and to any subordinate legislation or byelaw made under that enactment;

Where the word #including# is used in this Agreement, it shall be understood as meaning #including without limitation#.

2.3 HEADINGS

The headings and marginal notes in the General Conditions of Contract are included for ease of reference, and shall neither constitute a part of the Contract nor affect its interpretation.

2.4 PERSONS

Words imparting persons or parties shall include firms, Corporations, Companies, Joint Ventures, Consortiums and Government entities.

2.5 INCOTERMS

Unless inconsistent with any provision of the Contract, the meaning of any trade term and the rights and obligations of parties thereunder shall be as prescribed by Incoterms.

Incoterms means international rules for interpreting trade terms published by the International Chamber of Commerce (latest edition), 28 Course Albert 1er, 75008 Paris, France.

2.6 ENTIRE AGREEMENT

The Contract constitutes the entire agreement between the Purchaser and Contractor with respect to the subject matter of Contract and supersedes all communications, negotiations and agreements (whether written or oral) of parties with respect thereto made prior to the Date signing of the Contract.

2.7 AMENDMENT

No amendment or other variation of the Contract shall be effective unless it is in writing, is dated, expressly refers to the Contract, and is signed by a duly authorised representative of each party hereto.

2.8 CONTRACTOR

2.8.1 The Contractor shall be an independent Entity performing the Contract. The Contract does not create any agency, partnership, joint venture or other joint relationship between the parties hereto.

2.8.2 Subject to the provisions of the Contract, the Contractor for his works shall be solely responsible for the manner in which the Contract is performed

2.8.3 All employees, representatives or Sub-Contractors engaged by the Contractor in connection with the performance of the Contract shall be under the complete control of the Contractor and shall not be deemed to be employees of the Purchaser, and nothing contained in the Contract or in any Sub- Contract awarded by the Contractor shall be construed to create any Contractual relationship between any such employees, representatives or Sub-Contractors and the Purchaser.

2.9 CONSORTIUM

2.9.1 If the Contractor is a consortium of two or more parties but not more than five parties, all such parties shall be jointly and severally bound to the Purchaser for the fulfillment of the provisions of the Contract and shall designate one of such party to act as a leader with authority to bind the consortium. The composition or the constitution of the consortium shall not be altered without the prior consent of the Purchaser in writing. In case of Consortium becoming the successful bidder, all the members of the Consortium should be signatories to the Contract.

2.9.2 All employees, representatives or Sub-Contractors engaged by the Consortium in connection with the performance of the Contract shall be under the complete control of the Contractor and shall not be deemed to be employees of the Purchaser, and nothing contained in the Contract or in any Sub- Contract awarded by the Contractor shall be construed to create any Contractual relationship between any such employees,

representatives or Sub-Contractors and the Purchaser.

2.10 WAIVER

2.10.1 Subject to Sub-Clause 2.10.2 below, no relaxation, forbearance, delay or indulgence by either party in enforcing any of the terms and conditions of the Contract or the granting of time by either party to the other shall prejudice, affect or restrict the rights of that party under the Contract, nor shall any waiver by either party of any breach of Contract operate as waiver of any subsequent or continuing breach of Contract.

2.10.2 Any waiver of a party's rights, powers or remedies under the Contract must be in writing, must be dated and signed by an authorised representative of the party granting such waiver, and must specify the right and the extent to which it is being waived.

3.0 EXAMINATION OF LOCAL CONDITIONS

3.1 The Contractor shall be deemed to have visited the site of the work and ascertained therefrom all conditions and information pertaining to its work. No claim shall be permitted arising from non-fulfilment of the above.

3.2 The Contractor shall be deemed to have ascertained all local and national standards, regulations, practices etc. which may affect its services, choice of personnel, etc. including but not limited to, information relating to special restrictions or considerations, details of Project to be expanded, modified or duplicated, details of materials available etc. No claim for extra payment shall be permitted on these accounts.

4.0 CONFLICT AND INTERPRETATION OF DOCUMENTS

4.1 Several documents forming the Contract are to be taken as mutually explanatory of one another, but in case conflicting statements or directions should occur among the contract documents, it shall be the responsibility of the Contractor to notify the Engineer, with copy sent concurrently to the Purchaser (in duplicate), immediately in writing and obtain instructions from the Purchaser/Engineer to eliminate the conflict.

4.2 The Contractor shall notify the Engineer (in duplicate) with copy sent concurrently to the Purchaser (in duplicate), promptly of any discrepancies, omissions or doubts he may have, regarding drawings, specifications or other documents. Noted or calculated dimensions shall always be followed. Drawings shall not be scaled without the authorization of the Purchaser/Engineer.

5.0 NOTICES

5.1 Unless otherwise stated in the Contract, all notices to be given under the Contract shall be in writing, and shall be sent by personal delivery, post / airmail post, special courier, fax or e-mail to the address of the relevant party, with the following provisions.

5.1.1 Any notice delivered personally or sent by fax or e-mail shall be deemed to have been delivered on date of its dispatch

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5.1.2 Either party may change its postal, fax or e-mail address or addressee for receipt of such notices by ten (10) days# notice to the other party in writing

5.2 Notices shall be deemed to include any approvals, consents, instructions, orders and certificates to be given under the Contract.

6.0 CORRESPONDENCE

6.1 All correspondence by the Contractor pertaining to financial, commercial and technical matters and as may be specifically requested by the Purchaser and/or the Engineer shall be addressed to them in duplicate.

6.2 The Contractor address is provided in Schedule 7 of the Agreement.

6.3 The Purchaser address is provided in Schedule 7 of the Agreement.

7.0 DIRECTION OF WORK

7.1 The Contractor shall obtain instructions for carrying out the work pertaining to the Contract from the Purchaser and/or the Engineer.

7.2 The Contractor shall be under obligation to comply with instructions / directions given by the Purchaser and/or the Engineer, without any price implication to the Purchaser. In the event the Contractor should consider that such instructions / directions is detrimental to the Project and/or is contrary to terms of the contract, the Contractor shall so inform in writing, within ten (10) days, from the receipt of the instruction, to the Purchaser. The Purchaser after due consideration will give the instructions / directions which shall be implemented by the Contractor.

7.3 Except where this Agreement expressly provides for a written Direction, the Purchaser may give a Direction to the Contractor either orally or in writing. If at the time an oral Direction is issued, the Contractor requests confirmation in writing, the Contractor will not be bound to comply with the Direction until such written confirmation has been provided.

7.4 If the Contractor performs any work without the written approval of the Purchaser, the Contractor shall bear all the costs arising therefor and shall be responsible for all the losses to the Purchaser arising therefrom. The liability of the Contractor under this clause is exclusive of Liquidity Damages as may be required to be paid by the Contractor under Clause 3.4 of Schedule 3 of this Agreement.

7.5 Purchaser shall have the right, without contacting the Contractor, to immediately stop any work that, in the opinion of the Purchaser, Engineer, Representative or Agent has safety issue. Work will remain stopped until work is made safe. The Purchaser shall not be liable for any damage or loss which Contractor may have suffered due the stoppage of work by the Purchaser.

7.6 RESPONSIBILITY AND LIABILITY AGAINST DEFECTIVE EQUIPMENT

Designs, drawings, Equipment and other inputs to be supplied / provided by the Contractor shall be proven, approved and in accordance with Good Industrial Practices. The Contractor declares that its Equipment shall

be properly executed and free from any defect. In case of any faulty Equipment supplied / provided by the Contractor which is detected at any time, then the Contractor will modify / replace such defective Equipment forthwith at his own cost and expenses. Further any expenditure incurred by the Purchaser as a result/ consequence of such defective Equipment, Purchaser shall be entitled to recover such expenditure from any money due or accruing to the Contractor under this or any other Contract with the Purchaser, failing which such amount shall be considered as debt due from the Contractor to the Purchaser.

7.7 CONTRACTOR#S REPRESENTATIVE

7.7.1 If the Contractor#s Representative is not named in the Contract, then within fourteen (14) days of the Effective Date, the Contractor shall appoint the Contractor#s Representative and shall request the Purchaser in writing to approve the person so appointed. If the Purchaser makes no objection to the appointment within fourteen (14) days, the Contractor#s Representative shall be deemed to have been approved. If the Purchaser objects to the appointment within fourteen (14) days giving the reason therefor, then the Contractor shall appoint a replacement within fourteen (14) days of such objection, and the foregoing provisions of this Sub-Clause 7.2.1 hereof, shall apply thereto.

7.7.2 The Contractor shall not revoke the appointment of the Contractor#s Representative without the Purchaser#s prior written consent, which shall not be unreasonably withheld. If the Purchaser consents thereto, the Contractor shall appoint some other person as the Contractor#s Representative, pursuant to the procedure set out in Sub-Clause 7.2.1 hereof.

7.7.3 The Contractor#s Representative shall represent and act for the Contractor at all times during the currency of the Contract and shall give to the Purchaser/ Engineer all the Contractor#s notices, instructions, information and all other communications under the Contract. All notices, instructions, information and all other communications given by the Purchaser or the Engineer to the Contractor under the Contract shall be given to the Contractor#s Representative or, in its absence, its deputy, except as herein otherwise provided.

All notices, instructions, information and other communications given by the Contractor to the Purchaser under the Contract shall be given to the Purchaser and Engineer, except as herein otherwise provided.

7.7.4 The Contractor#s Representative may, subject to the approval of the Purchaser (which shall not be unreasonably withheld), at any time delegate to any person any of the powers, functions and authorities vested in him or her. Any such delegation or revocation shall be subject to a prior notice signed by the Contractor#s Representative, and shall specify the powers, functions and authorities thereby delegated or revoked. No such delegation or revocation shall take effect unless and until a copy thereof has been delivered to the Purchaser and the Engineer. Any act or exercise by any person of powers, functions and authorities so delegated to him or her in accordance with this Sub-Clause 7.2.4 hereof, shall be deemed to be an act or exercise by the Contractor#s Representative.

7.7.5 The Purchaser may by notice to the Contractor object to any representative or person employed by the Contractor in the execution of

the Contract who, in the reasonable opinion of the Purchaser, may behave inappropriately, may be incompetent or negligent, or may commit a serious breach of the Site regulations. The Contractor on receipt of such notice shall remove such person from the Project. If any representative or person employed by the Contractor is removed in accordance with Sub-Clause 7.2.5 hereof, the Contractor shall promptly appoint a replacement.

7.8 CONTRACTOR#S ORGANISATION

The Contractor shall supply to the Purchaser a chart showing the proposed organisation to be established by the Contractor for carrying out work on the Project. The chart shall include the identities of the key personnel together with the curricula vitae of such key personnel to be deployed within twenty-one (21) days of the Effective Date of the Contract. The Contractor shall promptly inform the Purchaser in writing of any revision or alteration of such an organisation chart. The Contractor shall also provide the organization structure with hierarchy and escalation structure for issues arising during the execution of the Agreement.

7.9 SITE REGULATIONS AND SAFETY

7.9.1 The Contractor shall abide by all the security regulations promulgated from time to time by the Purchaser / other concerned authorities.

7.9.2 The Contractor shall comply with the Site regulations, during the execution of the Contract at the Site, as given in the document of "Annexure III -Safety/ OSHAS Standard".

7.9.3 Such Site regulations includes, but not limited to, rules in respect of security, safety of the Project, gate control, sanitation, medical care, and fire prevention.

7.9.4 The employees brought to Site shall be subject to gate pass to be issued by Security Department or the respective Department.

7.9.5 Preparation of gate passes normally takes around 10 days# time. The Contractor shall plan their programme in advance accordingly.

7.9.6 All representatives of the Contractors shall possess admit pass issued by the Security Department on the recommendation of the Purchaser. Purchaser shall have the right to refuse the admit pass to any representatives without assigning any reasons.

7.9.7 The Contractor shall ensure that gate pass issued to their representatives by the Purchaser are not misused by unauthorised persons for entry in the plant area or in specified area inside the plant. It shall amount to breach of rules and regulations regarding entry into a prohibited place by the Contractors in case any admit pass issued on their demand is found to be misused by unauthorised person.

7.10 Emergency Work

If, by reason of an emergency arising in connection with and during the execution of the Contract, any protective or remedial work is necessary as a matter of urgency to prevent damage to the Project, the Contractor shall immediately carry out such work. In the event, reason is

attributable to the Contractor, such costs will be borne by him.

7.11 Export Licence

The Contractor, if required for execution of Contract, shall obtain and maintain the necessary Export License from the competent authorities and shall pay at his cost any fee connected therewith. Failure to obtain and maintain Export Licences shall not be considered as Force Majeure. In case the Contractor fails to obtain or maintain the licences, or if the licences are withdrawn, he shall restore them within two months from the date of such cancellation / withdrawal, failing which the Purchaser shall have the right to cancel the Contract and the Contractor shall forthwith return to the Purchaser all the amounts paid by the Purchaser to the Contractor.

8.0 GUARANTEE PERIOD AND FINAL ACCEPTANCE

The Contractor represents and guarantees to the Purchaser that:

8.1.1 The Equipment provided by the Contractor under Contractor's scope conforming to current relevant standards, will be modern, proven, approved and of the best selected type as developed by recent experience and that the Plant shall be capable, under normal use, operation and maintenance, of accomplishing the purpose for which it is furnished in conformity with Technical Specification and the Scope of Work.

8.1.2 The Equipment, provided by the Contractor, will comply with the Technical Specification, drawings and other documents furnished therefor by the Purchaser or by the Contractor and approved by the Purchaser, as the case may be.

8.1.3 In case the Contractor has provided similar Equipment elsewhere, the Contractor shall consider all modifications carried out and experience gathered from operation of such Equipment, and incorporate them in the Equipment.

The contractor shall make the Purchaser aware of such learnings and experiences within thirty (30) Days of the Effective Date the Contract and shall also take into account the learnings of the Purchaser from the experience of operating similar Plant.

8.1.4 The Project when erected and commissioned based on the supplies, provided by the Contractor, must constitute a complete, efficient and functioning unit, capable of operation at the specified/ derived rate and capacity and shall meet the performance parameters.

8.2 The guarantee period shall be twelve (12) months from the date of issue of Provisional Acceptance Certificate of the Project as defined under clause 13.7 hereof or thirty four (34) months from scheduled date of ICT, whichever is earlier. During the guarantee period, the Contractor shall at his own expense, upon written demand by the Purchaser, promptly modify / repair all or any portion of Equipment, which

- a) may not comply with the Technical Specifications therefor and representations and guaranties set forth herein, or
- b) may be of defective, faulty or incorrect and does not facilitate efficient working of plant
- c) under normal and proper use proves incorrect or deficient in

performance.

Corrections / modification/ replacement for the aforesaid cases shall be undertaken by the Contractor without any cost to the Purchaser.

8.3 All such modification(s) / repair(s) /replacement(s) of any part(s) of Equipment carried out by the Contractor to modify / rectify defects covered under Contractor's guarantee hereunder shall be made up to the level/standard defined in the Technical Specification. For any part(s) of Equipment which is so modified / repaired / replaced by the Contractor, the Guarantee Period shall be extended by eighteen (18) months from the delivery of the modified/ repaired/ replaced Equipment to the Purchaser.

8.4 The Contractor further confirms to make good the affected portion of plant due to such faulty design. In the event Contractor fails to such repairing of the plant within a reasonable time, the Purchaser may repair or replace the same at the Contractor's sole risk and expense without prejudice to any other rights which the Purchaser may have under the Contract. Prior to taking such remedial action, the Purchaser will advise the Contractor regarding the steps to be taken by the Contractor and will give ten (10) days' notice to the Contractor to take suitable action. Failure to reply in ten (10) days after the receipt of such notice by the Contractor outlining the steps being taken by the Contractor to the satisfaction of the Purchaser will constitute authority for the Purchaser to proceed with the repairs or replacements as aforesaid at the risk and cost of Contractor.

8.5 The Purchaser reserves the right to recover the cost plus twelve and half (12.5) percent of the cost, incurred against such corrections, modifications and / or purchase of Equipment.

8.6 On completion of guarantee period or extended guarantee period as the case maybe, the Purchaser will issue a Final Acceptance Certificate to the Contractor, subject to the provisions of clause 8.7 below.

8.7 The Final Acceptance Certificate, as per Sub-Clause 8.6 hereof, will not be issued till such time the Contractor has discharged all his obligations under the Contract.

8.8 The Guarantees will not cover:

- fast wearing parts and consumables, where the normal life expectancy after putting in use is less than the guarantee period.

9.0 RESPONSIBILITY FOR PERFORMANCE OF CONTRACT

9.1 PERFORMANCE OF CONTRACT

The Contractor shall be responsible for the due performance of the Contract in all respects according to the intent and meaning of the drawings, specifications and all other documents etc. forming part of the Contract.

Any approval that the Purchaser/Engineer may have given in respect of Supply of Equipment (whether with or without test carried out by the Contractor and witnessed by the Purchaser/Engineer) shall not bind the Purchaser/Engineer. Notwithstanding any approval or acceptance given by the Purchaser/Engineer, the Purchaser/Engineer shall have the liberty to

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reject Contractor's Equipment at any time within the guarantee period when the defect/non-performance is detected or when it is found that the materials/equipment designed by the Contractor are not in conformity with the terms and conditions of the Contract in any or all respects.

9.2 SUBLETTING

The Contractor shall not sublet, sub-contract, transfer or assign the Contract or any part thereof without prior written permission of the Purchaser. In the event of the Contractor contravening this condition, the Purchaser shall be entitled to place the Contract elsewhere on the Contractor's account and at its sole risk. The Contractor shall be liable for any loss or damage which the Purchaser may sustain in consequence of or arising out of such unauthorised subletting, sub-contracting, transferring or assigning of the contract. Such loss or damage payable by Contractor for contravening this clause is exclusive of Liquidity Damages as may be required to be paid by the Contractor under Clause 3.4 of Schedule 3 of this Agreement.

9.3 The approval for subletting, at the sole discretion of Purchaser, shall be subjected to such terms and conditions as may be set forth by the Purchaser at the time when such request for subletting has been made by the Contractor.

10.0 TYPE, QUALITY OF MATERIALS AND WORKMANSHIP

10.1 CODES AND STANDARDS

Codes and standards referred to in the Technical Specification shall be followed. Other equivalent codes and standards may be followed, with the prior approval of the Purchaser/Engineer, provided materials and equipment according to these standards are equal to, or better than the corresponding standards specified in the Technical Specification. In the event of any conflict between the codes and standards referred above, and the requirements of this Contract, the requirements which are more stringent shall govern. Wherever references are made in the Contract to codes and standards in accordance with which the Contract shall be executed, the edition or the revised version of such codes and standards current in force at the date of signing of the Agreement shall apply unless otherwise specified. During Contract execution, any changes in such codes and standards shall be applied after approval by the Engineer / Consultant & shall be treated in accordance with the Agreement.

10.2 STATUTORY ENACTMENT GOVERNING THE WORK

The Contractor shall execute the Contract, in accordance with the rules, regulations and enactment of Central Government and State Government governing such Equipment and codes and standards as applicable.

This shall not be construed as relieving the Contractor from complying with any requirements of the Supply of Equipment which may be more rigid than but not contrary to the above mentioned rules etc. nor from providing such Equipment as may be required by the above mentioned rules and regulations, even though it may not be included in Supply of Equipment. In case of variance in the Supply of Equipment from the laws, ordinance, rules and regulations governing the work, the Contractor shall immediately notify the Purchaser and Engineer and obtain instructions before proceeding on with the concerned Equipment.

It is however, the sole responsibility of the Contractor to determine that such variation exists.

Wherever required by regulation, in India and/or People's Republic of China, during the Contract tenure and the same is included in Contract Price. The compliance to local, statutory rules and regulation shall be done by respective Parties.

10.3 SUBSTITUTIONS FOR SPECIFIED MATERIALS

In general, the workmanship shall meet the requirements of standards and stipulations in the Contract documents. Substitutions for specified designs or variations from designed processes will be permitted only if approved by the Purchaser/Engineer. Such approval may be granted only if a compelling reason exists for making a substitution.

10.4 CALIBRATION IN METRIC SYSTEM

All meters, gauges, recorders and other types of indicating, integrating or recording devices shall be calibrated in the metric systems and degrees Celsius. Functional and instruction plates shall be in the English language.

10.5 QUALITY ASSURANCE PLAN (QAP) AND INSPECTION TEST PLAN (ITP)

Contractor shall prepare and submit Quality Assurance Plan and Inspection Test Plan for site activities. Purchaser shall review and if found suitable shall approve the same for start of execution work at site. Any delay in submission and further approval of same shall be attributable to Contractor. Contractor acknowledges that the agreed QAP and ITPs will be fully adhered during execution of site work and for any deviation occurred without prior written approval of Purchaser, Contractor will be liable to pay compensate the Purchaser for damages. Such compensation payable by Contractor for the said deviation is exclusive of Liquidity Damages as may be required to be paid by the Contractor under Clause 3.4 of Schedule 3 of this Agreement.

11.0 COLD TESTS, INTEGRATED COLD TEST AND START UP

11.1 On completion of erection of the Project by the Purchaser, trial runs for individual equipment / units shall be conducted by the Contractor to prove that the Plant have been supplied and erected as per Contract and after erection, Plant are fit for startup and commissioning.

Trial runs shall be so designed to conduct the systematic check of the components and of the functional operation thereof. Trial runs shall comprise idle, no-load and under-load trial runs.

On successful completion of trial runs and liquidation of the defects and / or deficiencies, indicated / listed during trial runs (except minor defects and / or deficiencies which in the opinion of the Purchaser will not affect the operation, safety & commissioning of the Project), the Purchaser shall conduct integrated trial runs of the Project.

11.2 After successful completion of integrated trial runs of the

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Project, the Purchaser, if required, shall deploy the necessary operating and maintenance personnel, raw materials, utilities & services.

11.3 As mutually agreed between the Contractor and the Purchaser after the operating and maintenance personnel have been deployed by the Purchaser and raw materials, utilities & services have been provided by the Purchaser in accordance with Sub-Clause 11.2 hereof, the Purchaser shall conduct integrated trial runs of the Project, in preparation for Performance Tests.

11.3.1 In case of Project involving operation at high temperature, trial runs on individual equipment / units and integrated trial runs shall be conducted in cold condition.

11.4 The Engineer shall, within fourteen (14) days after successful completion of Project under Sub-Clause 11.3 hereof, either issue a ICT Certificate stating that the Project are fit for start-up, as at the date of the Contractor's notice under Sub-Clause 11.3 hereof, or notify the Contractor in writing of any defects and / or deficiencies.

If the Engineer notifies the Contractor of any defects and / or deficiencies attributable to Contractor, the Contractor shall then correct such defects and / or deficiencies, and shall repeat the procedure described in Sub-Clause 11.3 hereof.

If the Engineer is satisfied that the defects and / or deficiencies, indicated / listed by the Purchaser to the Contractor have been liquidated and the Project are fit for start-up and commissioning, the Engineer shall, within seven (7) days after receipt of the Contractor's repeated notice, issue a ICT Certificate stating that the Project are fit for start-up, as at the date of the Contractor's repeated notice.

If the Engineer is not so satisfied, then the Purchaser shall notify the Contractor in writing of any defects and / or deficiencies within seven (7) days after receipt of the Contractor's repeated notice, and the above procedure shall be repeated.

11.6 As soon as possible, after issue of ICT Certificate, the Contractor shall complete all outstanding defects and / or deficiencies so that the Project are fully in accordance with the requirements of the Contract, failing which the Purchaser will undertake such completion at the risk and cost of Contractor.

11.7 ICT shall be completed within Forty Four (44) months from the Contract Effective date.

11.8 Void.

12.0 START UP

On the completion of the erection work, Integrated Cold Test and connecting up of electric power supply, water and utilities, the Contractor shall promptly notify the Purchaser and Engineer of the proposed date of the commencement of the start-up operations. The start-up shall be completed within Forty Five (45) months from the contract effectiveness date and duration for start-up shall be thirty (30) days. The activity wise duration of the start-up period shall be established in a schedule which shall be part of the Contract. The

aforesaid commencement date shall be subject to the approval (not to be unreasonably withheld) of the Purchaser. The Purchaser will provide labour, fuel, power, water and utilities in the specified quantity and quality for operating the plant during the start-up period when the plant will be operated.

13.0 PROVISIONAL ACCEPTANCE

13.1 The Contractor shall be responsible for demonstration of performance tests as specified in the Technical Specification on all equipment supplied by him, his sub-suppliers, and associates and/or procured by the Purchaser based on his drawings, documents, in the presence of the Purchaser and/or the Engineer. This responsibility shall rest with the Contractor regardless of whether the entire plant and equipment and services is procured from him or a part of the plant and equipment, including electrical equipment is obtained from other sources to the specifications of the Contractor, or a part of the equipment is manufactured by other agencies to the designs and drawings of the Contractor and regardless of whether the erection has been carried out by another agency.

Performance tests shall be completed within Forty Nine (49) months from the Contract Effective date.

13.2 On the completion of a satisfactory start-up operation, the Contractor shall submit the Purchaser and the Engineer in writing a Procedural protocol with the proposed date of the commencement of the performance test, subjected to the approval of the Purchaser. Every item of plant and equipment, as well as the plant as a whole or if a group of equipment is supplied by the Contractor then the group as a whole shall undergo performance test unless otherwise specified.

The man-power utilised in the tests for demonstration of performance guarantees shall not be more than the strength of normal operational personnel recommended by the Contractor and accepted by the Purchaser.

13.3 The Contractor will provide assistance in engineering related queries, if any, while carrying out of the performance tests

During the performance test, the Project will be operated as per Technical specification and other engineering documents guidelines. The Purchaser will provide necessary raw materials, lab, skilled/ unskilled personnel, fuel, power and utilities and any other agreed item as per Technical specification and other engineering documents. However, the Contractor shall provide complete details of such requirements as mentioned above for demonstration of Performance Guarantee within eight (8) months of prior to scheduled start of Integrated Cold Test.

13.4 For the commencement of performance test in order to guarantee the performance figures of the plant as indicated in the Technical Specification, the following pre-requisites shall be fulfilled by the Purchaser:

13.4.1 During the performance test, The Purchaser will provide operators, fuel, power, raw materials and utilities in the quantity and quality and any other agreed item as per the Technical Specification.

13.4.2 During the performance tests the Purchaser's personnel shall follow the instruction given by the Contractor with regard to plant

operation and maintenance.

13.4.3 The Contractor shall be allowed free access to the Plant at all reasonable times for purposes related to the fulfilment of its obligation and to make test adjustments which the Contractor deem necessary.

All necessary test equipment and materials as agreed between the Purchaser and the Contractor and necessary laboratory Project and stuff to run the required analysis as deemed necessary by the Contractor will be provided by the Purchaser at Purchaser's cost. As deemed necessary by the parties, the test equipment and materials for the determination of performance guarantees shall be tested at the Purchaser's cost prior to the performance test.

13.5 Should the continuous operation of the Project during the performance test be interrupted due to difficulties / mal-function of Equipment supplied by the Contractor, then the performance test shall be re-started and run again for the whole of the specified period of performance test. The Contractor shall modify / rectify defects which may have caused interruptions in the continuous operation of the Project. The Purchaser may however at his sole discretion permit the period of test run prior to the interruption to be reckoned as part of the aforesaid specified period, in which case the test will be run for the duration of the balance period on re-commencement.

13.6 The protocol of conducting the performance tests shall be mutually discussed and drawn upon with all procedures, parameters etc. before three months from the scheduled date of performance tests. As a part of protocol, all input conditions shall be vetted upon and any variations from the Technical Specification and the adjustment therefore on the guaranteed parameters, if any, shall be agreed. This protocol shall be the basis for conducting of the performance tests.

13.7 The plant shall be considered to have concluded the performance test satisfactorily if, during the test period, the plant shall have delivered the guaranteed specified output, to the accuracy and quality as specified in the Clause 3.6 of Schedule 3 while operated at the guaranteed specified capacity utilising the quantity and quality of raw materials, utilities, fuel and other supplies as specified in the Technical Specification.

13.7.1 If the results of the test are not satisfactory, then the test shall be repeated by the Contractor after necessary rectification and adjustments within 15 days or any other period mutually agreed upon with the Purchaser from the date of the preceding test. Maximum three (3) nos. repeat tests shall be allowed unless otherwise agreed by the Purchaser. If the Contractor fails to demonstrate the performance guarantee parameters even after repeat tests, but the results of the test are within the tolerance limits as specified in the Technical Specification, then the Purchaser shall accept the plant with liquidated damages, as per clause 3.4 of Schedule 3 of the Agreement.

13.8 On the satisfactory completion of the performance test and on signing of the Completion protocol between the Purchaser and the Contractor, the Purchaser will promptly issue a Provisional Acceptance Certificate for the plant, provided that the Contractor undertakes to promptly rectify defects, if any, which do not influence commercial operation but which are nevertheless present in the plant and which are

indicated in writing by the Purchaser to the Contractor and the Contractor has fulfilled his obligations regarding his submission of designs and drawings including "As Built Drawings". Such certificate, however, shall in no way release the Contractor from his liabilities and responsibilities in respect of the contract plant as a whole.

13.9 If the results of the performance tests are delayed for reasons attributable solely to the Purchaser, the payment related to Provisional Acceptance Certificate shall be released on the expiry of four (4) months from the scheduled date of Performance Guarantee Tests, against Purchaser's declaration to this effect (instead of aforesaid Provisional Acceptance Certificate), subject to Contractor's submitting a Bank Guarantee of equivalent amount valid for twelve (12) months. Such Bank Guarantee shall be in Purchaser's approved pro forma. However, the Contractor, within the aforesaid period of twelve (12) months, shall still be responsible for demonstration of performance test. In the later event, in case of Contractor's demonstration of successful performance during the above mentioned period, then Provisional Acceptance Certificate will be issued and the Bank Guarantee related to the payment related to Provisional Acceptance Certificate will be returned to the Contractor. In case the performance tests could not be carried out due to reasons solely attributable to the Purchaser during the aforesaid period of twelve (12) months, then Contractor shall extend the validity of Bank Guarantee for further 12 (twelve) month period (hereinafter referred as "extended PAC period"). The Contractor shall still be responsible for demonstration of performance test during extended PAC period. In the event of Contractor's demonstration of successful Performance Guarantee Tests during the above mentioned period, then Provisional Acceptance Certificate will be issued and the Bank Guarantee related to the payment regarding Provisional Acceptance Certificate will be returned to the Contractor.

14.0 REJECTION OF DEFECTIVE EQUIPMENT

If the completed Project or any portion thereof at any time before it is provisionally accepted, be found defective or fails to fulfil the requirements of the Contract, the Purchaser shall be at liberty to reject any work done or services provided by the Contractor.

The Purchaser shall give the Contractor notice as soon as reasonably practicable, setting forth particulars of such defects or failure and subsequently affected portion(s) of the Project. The Contractor must, with all speed and at its own expense correct the defects and subsequently affected portion(s) of the Project, so as to make it comply with the requirements of the Contract. Should he fail to do so within a reasonable time, the Purchaser may reject and replace, at the cost of the Contractor, the whole or any portion of the work / services, as the case may be, which is defective or fails to fulfil the requirements of the Contract. The Contractor's liability under this clause shall be satisfied by paying the Purchaser all moneys paid till date by the Purchaser to the Contractor in respect of such Equipment plus the ascertained difference, if any, between the replacement price as installed and the original Contract Price as installed, in respect of such defective work / Equipment.

In the event of such rejection, the Purchaser shall be entitled to the use of the plant for a time sufficient to enable him to obtain the replacement plant.

Any amount payable by Contractor for rejection of defective work or removal/ replacement of plant by Purchaser as stated above is in addition of Liquidity Damages as may be required to be paid by the Contractor under Schedule 3 of this Agreement.

15.0 PROGRESS REPORT

15.1 The progress reports shall include:

15.1.1 Summary data:

i) Summary statement of the objectives to be achieved by the Supply of Equipment / Work;

ii) Milestones (if any) to be achieved during the performance of the Supply of Equipment;

iii) Summary description of the Phases (if any) for the performance of the Supply of Equipment;

iv) Status of the Supply of Equipment / Work performed;

v) Status of any Approvals the Contractor is required to assist with or obtain;

vi) Achievements this month;

vii) Highlights next month; and

viii) Issues of concern.

15.1.2 Program scheduled progress: This is to be in the form of an updated Work Plan/Work Method Statement/ Time Schedule accompanied by a narrative section explaining any significant variations from the previous report, causes for the deviation, and where adverse, planned corrective action;

15.1.3 Technical progress: This section of the report should include details of problems encountered in achieving the technical requirements for performance of the Supply of Equipment / Work;

15.1.4 Approvals: This section of the report should include details of any problems encountered in obtaining or complying with Approvals requirements;

15.1.5 A summary of the technical problems and failures reported or detected, the delay or down- time incurred, response time achieved to rectify the problem and the corrective action taken;

15.1.6 A general assessment of the status of the relevant part of the Project affected by the performance of the Supply of Equipment / Work including any unresolved issues which may affect the achievement of Project objectives;

15.1.7 Any other information that the Purchaser reasonably requires.

15.2 The Contractor shall submit to the Purchaser and Engineer on or

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before 28th day of each month soft copy of monthly progress reports giving the status of the contract work as of 25th day of the month along with adequate number of photographs where necessary, indicating the various stages of manufacture.

15.3 Contractor#s representative shall attend monthly / fortnightly/weekly review meetings to inform the Purchaser about the progress of work. These review meetings may be held via telephone conference, video conference, or at the Contractor#s or Purchaser#s designated locations, as per mutual agreement between Contractor and Purchaser

15.4 Manufacturing Status

15.4.1 The Progress report shall include equipment manufacturing status report, detailing the progress of procurement of raw materials, manufacture, when the particulars equipment or sub-assembly is expected to be ready for inspection, status of inspection, dispatch, delivery, etc. both at Contractor's as well as his sub-contractor's works.

15.4.2 The above Progress report shall preferably include network planning in the agreed format. The Purchaser/Engineer will have the right to depute their representatives to ascertain the progress of manufacturing at the premises of the Contractor and of his sub-contractors.

The format of the Progress Report shall be discussed and agreed between the Contractor and the Purchaser.

15.5 Acceptance does not Prejudice Rights

The submission, receipt and acceptance of such Progress report shall not prejudice the rights of the Purchaser under the Contract, nor shall be considered as significant against the Purchaser/Engineer merely by the fact that he has not taken notice of or subjected to test any information contained in such reports.

16.0 PROGRESS OF PERFORMANCE

If at any time the Contractor#s actual progress falls behind the program, or it becomes apparent that it will so fall behind, the Contractor shall, at the request of the Engineer, prepare and submit to the Engineer a revised program, taking into account the prevailing circumstances, and shall notify the Engineer of the steps being taken to expedite progress so as to attain Completion of the Project within the Time for Completion, or any extended period as may otherwise be agreed upon between the Purchaser and the Contractor.

17.0 ASSIGNMENT

17.1 Either Party shall not, without the express prior written consent of the other Party assign to any third party the Contract or any part thereof, or any right, benefit, obligation or interest therein or thereunder, unless otherwise the same is specifically specified in the Agreement.

17.2 Should loan / financial agreement(s) require the Contractor to

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assign, by way of charge, any money due or to become due to it, to a bank / credit agency for the benefit of receiving payment by the Contractor under this Contract from such bank / credit agency, or if any partial assignment is necessary to be made to any insurer in terms of Insurance Policy approved by the Purchaser, the Purchaser may give consent in such cases.

18.0 OWNERESHIP

18.1 TRANSFER OF OWNERSHIP

18.1.1 The ownership of Designs, Drawings, other documents etc. Whose prices are included in the Contract Price, shall be transferred to the Purchaser on submission of the same through electronic means or in hard copy as applicable.

18.1.2 The title of ownership for Equipment, accessories etc. shall pass on to the Purchaser after the Contractors have effected the dispatch of same to the Purchaser or the Contractors have effected the sale, in course of transit, as per applicable laws.

18.1.3 Notwithstanding the transfer of ownership of the Designs, Drawings, Equipment, other documents etc., the responsibility with the risk of short supply and/ or manufacturing defect(s) and/ or damage attributable to Contractor, thereto shall remain with the Contractor, until PAC of the Project.

18.1.4 The Contractor guarantees, the materials and workmanship of the supplied equipment on which the contractor has the lawful authority to transfer the properties in goods.

18.2 CHANGES IN OWNERSHIP

The Contractor must, at its earliest available opportunity, inform the Purchaser in writing any change in ownership of the Contractor. In the event the change in ownership has resulted in management and control of the Contractor being transferred to any company who may be in direct competition with Purchaser or its subsidiaries or affiliated companies and such transfer in the opinion of Purchase may jeopardize the Project or otherwise may be detrimental to the interest of the Purchaser or its subsidiaries or affiliated companies, the Purchaser may at its own discretion terminate the Contract by giving appropriate notice to the Contractor. For the purpose of this clause, the change of ownership will include (but not limited to) substantial change in shareholding of the Contracting company resulting in change in management, controlling and ultimate decision making authority of the Contractor.

19.0 CHANGES IN THE WORK

19.1 The Purchaser may require deviations from, additions to or omissions in the drawings, specifications and the Scope of work/ Supply of Equipment originally agreed upon between the Contractor and Purchaser and shall subsequently make any variation in quality or quantity of the Supply of Equipment or any part there of that may in his opinion be necessary and for that purpose or if for any other reason it shall in his opinion be desirable have power to order the Contractor to do and the Contractor shall do any of the following:

a) increase or decrease the quantity of any Equipment included in the contract.

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- b) omit any such Equipment
- c) change the character or quality or kind of any such Equipment
- d) change the levels, lines position and dimensions of any part of Equipment and
- e) execute additional work / supply of any kind necessary for the completion of the works / Supply of Equipment and no such variation in any way vitiate or invalidate the contract but the value (if any) of all such variations shall be taken into account in ascertaining the amount of the contract price.

19.2.1 No such variation shall be made by the Contractor without an order in writing of the engineer. Provided that no order in writing shall be required for increase or decrease in the quantity of any Equipment where such increase or decrease is not the result of an order given under this Clause but is the result of the quantities exceeding or being less than those stated in the Technical Specification or is required for completeness as per clause 1.15 of Schedule 1.

19.2.2 The Purchaser shall adjust the amount (if any) to be added to or deducted from the Contract Price in respect of any extra or additional / reduction of Supply of Equipment.

All such valuation shall be valued by a Committee consisting of representative of the Purchaser and the Engineer and constituted by the Purchaser for this purpose.

Cost of such extra items / Equipment shall be determined by the Committee as may be considered reasonable by it. For this purpose the Contractor shall submit to the Engineer detailed analysis of the cost proposed by the Contractor supported with relevant vouchers. While determining rate of extra items, the Committee shall provide an allowance of 12.5 % towards the Contractor's overheads and profit.

19.2.3 The Contractor shall send to the Purchaser once in every month an account giving particulars (as full and detailed as possible) of all claims for any additional expenses to which the Contractor may consider himself entitled and of all extra or additional Supply of Equipment ordered by the Purchaser which he has provided during the preceding month and no claim for payment for any such work will be considered which has not been included in such particulars.

20.0 RISK AND COST

In case of default on the part of the Contractor in carrying out any obligations under the Agreement, the Employer shall, after giving seven (7) days' notice to the Contractor, be entitled to employ and pay other persons to carry out the same and all expenses consequent thereon or incidental thereto shall be borne by the Contractor and shall be recoverable from him by the Employer or may be deducted by the Employer from any money due or which may become due to the Contractor.

21.0 DISSOLUTION/BANKRUPTCY, ETC

If the Contractor shall go into dissolution or become bankrupt or

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declared Sick Industrial Company by BIFR under Sick Industrial Companies (Special Provisions) Act, 1985, or under any other applicable Law or cause or suffer any receiver to be appointed of its business or any assets thereof or compound with its creditors, or being a corporation commence to be wound up, (not being members' voluntary winding up for the purpose of amalgamation or reconstruction) or carry on its business under a receiver for the benefits of its creditors or any of them, the Purchaser shall be at liberty:

a) to terminate the Contract forthwith upon coming to know of the happening of any such event as aforesaid by notice in writing to the Contractor or to the receiver or liquidator or to any person in whom the Contract may become vested, or

b) to give such receiver, liquidator or other person the option of carrying out the Contract subject to its providing a guarantee up to an amount to be agreed by the Purchaser for the due and faithful performance of the Contract.

If the Employer shall go into dissolution or become bankrupt or insolvent or cause or suffer any receiver to be appointed of his business or any assets thereof or compound with his creditors, or being a corporation commence to be wound up, (not being members' voluntary winding up for the purpose of amalgamation or reconstruction) or carry on its business under a receiver for the benefits of its creditors or any of them, the Contractor shall be at liberty to terminate the Contract forthwith upon coming to know of the happening of any such event as aforesaid by notice in writing to the Employer or to the receiver or liquidator or to any person in whom the Contract may become vested.

22.0 FORCE MAJEURE

If at any time during the continuance of this Contract the performance by either party under this Contract shall be prevented by reasons of any declared war, hostility, acts of the public or enemy, civil commotion, sabotage, fire, flood, earthquake, explosion, epidemic, quarantine restrictions or other Acts of God, (hereinafter referred to as #eventuality#) affecting the performance and respective obligation of the parties provided that notice of the happening of any such eventuality is given by either party to the other within fifteen (15) days from the date of the occurrence of such eventuality, neither party shall, by reason of such eventuality be entitled to terminate this Contract, nor shall either party have any claim for damages against the other in respect of such non-performance and the work under this Contract. The performance shall be resumed as soon as practicable after such eventuality has come to an end or ceased to exist. Under such circumstances the contractual delivery period shall be extended by a period equal to that during which such eventuality operated plus an additional period, if any, will be jointly agreed. Whether the eventuality has come to an end or ceased to exist will be deliberated and mutually settled. Should one or both parties be prevented from fulfilling their contractual obligations by a state of force majeure lasting continuously for a period of at least three (3) months, both the parties shall consult each other regarding the further implementation of the Contract, provided always that, if no mutually agreed arrangement is arrived at within a period of one (1) month from the expiry of the three (3) months referred to above, the Contract shall be deemed to have expired at the end of the said three (3) months referred to above. The

above mentioned expiry of the Contract will imply that both the parties have the obligation to reach an Agreement regarding the winding up and financial settlement of the Contract.

23.0 SUSPENSION AND TERMINATION

23.1 SUSPENSION

23.1.1 The Purchaser may, by notice to the Contractor, order the Contractor to suspend performance of any or all of its obligations under the Contract. Such notice shall specify the obligation of which performance is to be suspended, the Effective Date of the suspension and the reasons therefor. The Contractor shall thereupon suspend performance of such obligation until ordered in writing to resume such performance by the Purchaser. All work so stopped shall be resumed by the Contractor based on a schedule to be mutually agreed upon between the Purchaser and the Contractor.

Such suspension shall not exceed in aggregate for a period of seven (7) months. However, if the period of suspension exceeds seven (7) months, the cost and time aspect shall be mutually discussed and decided.

23.1.2 For any work, which is executed by the Contractor during the suspension, the Purchaser shall neither pay the Contractor nor shall be liable to the Contractor for any damage or loss caused by such suspension. However, work completed before suspension, shall be paid, if suspension is attributable to Purchaser.

23.2 TERMINATION

23.2.1 TERMINATION FOR PURCHASER'S CONVENIENCE

23.2.1.1 The Purchaser may at any time terminate the Contract for any reason by giving the Contractor 30 days' notice of termination that refers to Clause 23.2.1 hereof.

23.2.1.2 Upon receipt of the notice of termination under Sub-Clause 23.2.1.1 hereof, the Contractor shall either immediately or upon the date specified in the notice of termination

a) cease all further work, except for such work as the Purchaser may specify in the notice of termination for the sole purpose of protecting that part of the Project already executed, or any work required to leave the Site in a clean and safe condition

b) terminate all subcontracts, except those to be assigned to the Purchaser pursuant to paragraph (d) (ii) below

c) remove all Contractor's Equipment from the Site, repatriate the Contractor's and its Subcontractors' personnel from the Site, remove from the Site any wreckage, rubbish and debris of any kind, and leave the whole of the Site in a clean and safe condition

d) In addition, the Contractor, subject to the payment specified in Sub-Clause 23.2.1.3 hereof, shall

(i) deliver to the Purchaser the parts of the Project executed by the Contractor up to the date of termination

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(ii) to the extent legally possible, assign to the Purchaser all right, title and benefit of the Contractor to the Project and to the Plant and Equipment as at the date of termination, and, as may be required by the Purchaser, in any subcontracts concluded between the Contractor and its Subcontractors

(iii) deliver to the Purchaser all drawings, specifications, Equipment and other documents prepared by the Contractor or its Subcontractors as at the date of termination in connection with the Project.

23.2.1.3 In the event of the termination of the Contract under Sub-Clause 23.2.1.1 hereof, the Purchaser shall pay to the Contractor only the direct cost incurred by Contractor, the properly attributable to the parts of the Project executed by the Contractor as of the date of termination.

23.2.2 TERMINATION FOR CONTRACTOR#S DEFAULT

23.2.2.1 The Purchaser, without prejudice to any other rights or remedies it may possess, may terminate the Contract forthwith in the following circumstances by giving 7 days# notice of termination and its reasons therefor to the Contractor, referring to this Sub-Clause 23.2.2 hereof:

a) if the Contractor becomes bankrupt or insolvent, has a receiving order issued against it, compounds with its creditors, or, if the Contractor is a corporation, a resolution is passed or order is made for its winding up (other than a voluntary liquidation for the purposes of amalgamation or reconstruction), a receiver is appointed over any part of its undertaking or assets, or if the Contractor takes or suffers any other analogous action in consequence of debt.

b) if the Contractor assigns or transfers the Contract or any right or interest therein in violation of the provision of Clause 18.1 hereof.

23.2.2.2 If the Contractor

a) has abandoned or repudiated the Contract

b) has without valid reason failed to commence work on the Project promptly or has suspended the progress of Contract performance for more than twenty-eight (28) days after receiving a written instruction from the Purchaser to proceed

c) persistently fails to execute the Contract in accordance with the Contract or persistently neglects to carry out its obligations under the Contract without just cause

d) refuses or is unable to provide sufficient / adequate resources to execute and complete the Project, at rates of progress that give reasonable assurance to the Purchaser that the Contractor can attain Completion of the Project by the Time for Completion.

then the Purchaser may, without prejudice to any other rights it may possess under the Contract, give a notice to the Contractor stating the nature of the default and requiring the Contractor to remedy the same.

If the Contractor fails to remedy or to take steps to remedy the same within fourteen (14) days of its receipt of such notice, then the Purchaser may terminate the Contract forthwith by giving a notice of termination to the Contractor that refers to this Sub-Clause 23.2.2

hereof.

23.2.2.3 Upon receipt of the notice of termination under Sub-Clauses 23.2.2.1 or 23.2.2.2 hereof, the Contractor shall, either immediately or upon such date as is specified in the notice of termination,

a) cease all further work, except for such work as the Purchaser may specify in the notice of termination for the sole purpose of protecting that part of the Project already executed, or any work required to leave the Site in safe condition

b) terminate all subcontracts, except those to be assigned to the Purchaser pursuant to paragraph (d) below

c) deliver to the Purchaser the parts of the Equipment executed by the Contractor up to the date of termination

d) to the extent legally possible, assign to the Purchaser all right, title and benefit of the Contractor to the Project as at the date of termination, and, as may be required by the Purchaser, in any subcontracts concluded between the Contractor and its Subcontractors

e) deliver to the Purchaser all drawings, specifications and other documents prepared by the Contractor or its Subcontractors as at the date of termination in connection with the Project.

23.2.2.4 The Purchaser may complete the Project itself or by employing any third party at the risk and cost of the Contractor. The Purchaser may, to the exclusion of any right of the Contractor over the same, take over and use any design, services and inputs in connection with the Project for such reasonable period as the Purchaser considers expedient for the Project.

23.2.2.5 Subject to Sub-Clause 23.2.2.6 hereof, the Contractor shall be entitled to be paid the Price attributable to the Part of the services executed as at the date of termination. Any sums due to the Purchaser from the Contractor accruing prior to the date of termination shall be deducted from the amount to be paid to the Contractor under this Contract.

23.2.2.6 If the Purchaser completes the Project, the cost of completing the Project by the Purchaser shall be determined.

If the sum that the Contractor is entitled to be paid, pursuant to Sub-Clause 23.2.2.5 hereof, plus the reasonable costs incurred by the Purchaser in completing the Project, exceeds the Contract Price, the Contractor shall be liable for such excess.

If such excess is greater than the sums due to the Contractor under Sub-Clause 23.2.2.5 hereof, the Contractor shall pay the balance to the Purchaser, and if such excess is less than the sums due the Contractor under Sub-Clause 23.2.2.5 hereof, the Purchaser shall pay the balance to the Contractor.

The Purchaser and Contractor shall agree, in writing, on the computation described above and the manner in which any sums shall be paid.

23.2.3 In this Clause 23.2 hereof, the expression "Project executed"

shall include all work/ services executed, by the Contractor and used or intended to be used for the purpose of the Project, up to and including the date of termination.

23.2.4 In this Clause 23 hereof, in calculating any money due from the Purchaser to the Contractor, account shall be taken of any sum previously paid by the Purchaser to the Contractor under the Contract, including any advance payment paid.

24.0 EXTENSION OF TIME FOR COMPLETION

24.1 The Time(s) for Completion specified in the Schedule 3 shall be extended if the Contractor is delayed or impeded in the performance of any of its obligations under the Contract by reason of any of the following:

- a) any Change in the Work as provided in Clause 19(Changes in the Work) hereof
- b) any occurrence of Force Majeure as provided in Clause 22(Force Majeure) hereof
- c) any suspension order given by the Purchaser under Clause 23.1(Suspension) hereof
- d) The default by the Purchaser, if proved to be cause for delay in completion of the Project

by such period as shall be fair and reasonable in all the circumstances and as shall fairly reflect the delay or impediment sustained by the Contractor.

24.2 Except where otherwise specifically provided in the Contract, the Contractor shall submit to the Purchaser a notice of a claim for an extension of the Time for Completion, together with particulars of the event or circumstance justifying such extension as soon as reasonably practicable after the commencement of such event or circumstance. As soon as reasonably practicable after receipt of such notice and supporting particulars of the claim, the Purchaser and the Contractor shall agree upon the period of such extension. In the event that the Contractor does not accept the Purchaser's estimate of a fair and reasonable time extension, the Contractor shall be entitled to refer the matter for Conciliation / Arbitration.

24.3 The Contractor shall at all times use its reasonable efforts to minimise any delay in the performance of its obligations under the Contract.

25.0 INDEMNITY

25.1 The Contractor assumes responsibility and shall hold harmless the Purchaser from all liabilities, claims, demands, costs, charges, expenses, taxes and assessments, including penalties, direct damages, proceedings, reasonable attorney's fees and litigation expenses, arising out of any acts or omissions or resulting from any breach of Contractor's obligations under this Contract, including those imposed under any local or national laws applicable to Contractor's Work. The Contractor further shall indemnify and save Purchaser harmless in

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respect to all claims for violation of any laws including salaries, wages, or other compensation of all persons employed by the Contractor or his sub-Contractors or suppliers in connection with the performance of any work covered by the Contract. The Contractor shall execute and deliver and shall cause his sub-contractors and suppliers visiting and/or having presence at Site to execute and deliver such other further instruments and to comply with such requirements of such law and regulations as may be necessary thereunder to confirm and effectuate this Contract and to protect the Purchaser or his office and employees.

25.2 Contractor, its directors, associates, employees, successors, assignees, servants or any of them, to the extent caused by them, shall also indemnify and hold Purchaser, its directors, employees, successors, assignees, servants or any of them harmless from

25.2.1 Any claim, demand, course of action, loss, expenses or liability on account of injury or death of persons (including the employees of the Purchaser and the Contractor / Subcontractor) or damage to or loss of property (including Contract Works/the property of the Purchaser/Third Parties) arising out of the negligent acts, errors or omissions of Contractor or its sub-contractor/associates in performance of Contractor's obligation under this Contract.

25.2.2 Any claim by Government authorities/quasi-Governmental body for failure by the Contractor to pay fines, taxes, duties, fees applicable to them arising out of the Project.

25.2.3 Any claim by third party including sub-contractors for failure to make payment for labour, services, equipment and materials arising out of this Project.

25.2.4 Any claim with regard to designs, methods, process including but not limited to claims arising out of infringement of Intellectual Property legislations and amendments there to, patent, trademark, property information, know-how, copyright, unpatented inventions or any unauthorised use of work.

25.3 The Contractor shall defend at his own expenses any suit proceedings for any claim asserted against the Purchaser. The Purchaser shall give reasonable assistance required in defending the suit and Purchaser reserves the right to defend/settle the claim if Contractor fails to defend diligently any such suits or proceedings without relieving the Contractor of his obligation.

26.0 REMEDIES

The Purchaser shall be entitled to recover all costs, charges, damages or expenses, which the Purchaser may have paid, for which under the Contract the Contractor is liable. All costs or expenses for which the Contractor may become liable to the Purchaser shall be recovered by the Purchaser from the invoices of the Contractor. Such recovery can further be made by the Purchaser from any sum then due or which at any time thereafter may become due to the Contractor under this or any other Contract with the Purchaser. Should this sum be not sufficient to cover the full amount recoverable, the Contractor shall pay to the Purchaser, on demand, the remaining balance due.

27.0 CONSEQUENTIAL DAMAGES

ORDER CONTINUATION SHEET

Neither party shall be responsible to the other party for any indirect and/or consequential damages including but not limited to loss of profit provided that this exclusion shall not apply to any obligations of the Contractor including payment of liquidated and other damages by the Contractor to the Employer..

28.0 CONFIDENTIALITY

28.1 COPYRIGHT

The copyright in all drawings, documents and other materials containing data and information furnished by the Contractor to the Purchaser herein, shall remain vested in the Contractor; however, the Purchaser shall have the right to use all such drawings, documents and other material, data and information for execution of the contract and operation & maintenance of the Project being subject of the Contract.

However, the Contractor shall be deemed to give to the Purchaser a non-terminable transferable non-exclusive royalty-free licence to copy, use and communicate the Contractor's Documents, including making and using modifications of them. This licence shall apply throughout the actual or intended working life (whichever is longer) of the relevant parts of the Works, entitle Purchaser in proper possession of the relevant part of the Project to copy, use and communicate the Contractor's Documents for the purposes of completing, operating, maintaining, altering, adjusting, repairing and demolishing the Project, and in the case of Contractor's Documents which are in the form of computer programs and other software, permit their use on any computer on the Site and other places as envisaged by the Contract, including replacements of any computers supplied by the Contractor.

28.2 CONFIDENTIAL INFORMATION

28.2.1 The Purchaser and the Contractor shall keep confidential and shall not, without the written consent of the other party hereto, divulge to any third party any document, data or other information furnished directly or indirectly by the other party hereto in connection with the Contract, whether such information has been furnished prior to, during or following termination of the Contract. Notwithstanding the above, the Contractor may furnish to its Sub-Contractor(s) such documents, data & other information it receives from the Purchaser to the extent required for Sub-Contractor(s) to perform its work under the Contract, in which event the Contractor shall obtain from such Sub-Contractor(s) an undertaking of confidentiality similar to that imposed on the Contractor under this clause.

28.2.2 The Purchaser shall not use such documents, data and other information received from the Contractor for any purpose other than the operation and maintenance of the Project. Similarly, the Contractor shall not use such documents, data and other information received from the Purchaser for any purpose other than the design, procurement of Plant and Equipment, construction or such other work and services as are required for the performance of the Contract.

28.2.3 The obligation of a party under Sub-Clauses 28.2.1 and 28.2.2 hereof, however, shall not apply to that information which
a) now or hereafter enters the public domain through no fault of that party.

b) can be proven to have been possessed by that party at the time of disclosure and which was not previously obtained, directly or indirectly, from the other party hereto.

c) otherwise lawfully becomes available to that party from a third party that has no obligation of confidentiality.

28.2.4 The above provisions of this clause (Clause 28.2 hereof) shall not in any way modify any undertaking of confidentiality given by either of the parties hereto prior to the date of the Contract in respect of the Project or any part thereof.

28.2.5 The provisions of this clause (Clause 28.2 hereof) shall survive termination, for whatever reason, of the Contract.

29.0 DISPUTE RESOLUTION

29.1 GOVERNING LAW AND JURISDICTION

This Agreement shall be construed, governed and enforced in accordance with the laws of India. The parties hereby agree that jurisdiction shall be vested in the Court at Jamshedpur in the state of Jharkhand, India.

29.2 DISPUTE RESOLUTION

29.2.1 AMICABLE SETTLEMENT

29.2.1.1 Notice of Dispute or Difference

29.2.1.1.1 If a dispute or difference arises between the Parties under this Agreement and one Party requires it to be resolved, that Party must promptly give the other Party notice identifying, and giving details of, the dispute or difference.

29.2.1.2 Negotiate in Good Faith

29.2.1.2.1 Within thirty (30) Days of a Party receiving the notice referred to in clause 29.2.1.1.1, a delegate of the Contractor and a delegate of the Purchaser will meet and, in Good Faith, attempt to resolve the dispute or difference.

29.2.1.2.2 If, within fifteen (15) Days of the first meeting under clause 29.2.1.2.1 the dispute or difference is not resolved, the delegates of the Contractor and the Purchaser will meet again within a further twenty (20) Days and, in Good Faith, attempt to resolve the dispute or difference.

29.2.1.2.3 If the dispute is not resolved in the meeting convened pursuant to clause 29.2.1.2.2, either Party may, by notice to the other, refer the dispute to arbitration.

29.2.2 ARBITRATION

29.2.2.1 If, however, the Purchaser and the Contractor are not able to resolve their disputes / differences amicably as aforesaid, the said

disputes / differences shall be settled by and finally decided by arbitration in accordance with the provisions of this clause.

1) Any arbitration referred to pursuant to this Article shall be administered by the Singapore International Arbitration Centre (SIAC) in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("SIAC Rules") for the time being in force, which rules are deemed to be incorporated by reference in this clause,

2) The arbitral tribunal shall consist of three arbitrators, with one arbitrator nominated by each Party and the third arbitrator nominated by the arbitrators so nominated, who shall act as the presiding arbitrator.

3) The venue of arbitration shall be Singapore.

4) The language to be used in the arbitration shall be the English language exclusively and all award/s shall be made in the English language.

5) Any decision or award of the arbitral tribunal shall include a reasoned statement of the basis for the decision or award and shall be final and binding upon the Parties.

31.2.2.2 The Parties hereto expressly and irrevocably agree that the arbitral award so passed may be enforced against the Parties to the arbitration proceeding or their assets wherever they may be found.

31.2.2.3 The cost of arbitration shall be borne equally by the respective parties. The cost of Arbitration shall, inter alia, include the fees of the arbitrator (s) as agreed by both the parties or provided under applicable SIAC Rules. The Contractor shall continue to perform its obligations under the Contract, diligently, even after any dispute has arisen between the parties and the same has been referred to the arbitration or mediation proceedings. Unless specifically advised by the Purchaser, the Contractor under no circumstances, whatsoever, shall stop work.

30.0 PATENT INFRINGEMENT

30.1 The Contractor represents and warrants that he has the Patent and Intellectual Property Right over the Design and Drawing, knowhow, technical knowledge etc. to be supplied to the Purchaser. The Contractor shall protect and indemnify the Purchaser, its successors, assigns, customers and users of its Design and Drawing, knowhow, technical knowledge against all damages and liabilities, including costs, expenses, claims, suits or proceedings arising out of, or in connection with, any actual or alleged patent infringement (including process patents, if any), or violation of any licence with respect thereto, by reason of the supply and/or sale by, or on behalf of the Contractor of the Design and Drawing, knowhow, technical knowledge or any part thereof for the purpose for which it is furnished, or the sale by the Purchaser, its successors or assigns of products made, manufactured, fabricated, processed or produced by using Design and Drawing, knowhow, technical knowledge or any part thereof, and shall defend or settle at the Contractor's own expense, any such claims, suits or proceedings.

30.2 The Purchaser will promptly notify the Contractor in writing of any such claim, suit, action or proceeding coming to its attention or

ORDER CONTINUATION SHEET

knowledge, giving authority and all available information and assistance for the Contractor's defence of the same. If at any time the installation of the Plant or any part thereof which has been manufactured or procured based on the said Design and Drawing, knowhow, technical knowledge, or the use thereof in India for the purpose for which it is furnished, or the sale of products produced by the said Plant, is prevented or enjoined because of patent infringement or claimed infringement related to the Design and Drawing, knowhow, technical knowledge supplied by the Contractor, the Contractor shall promptly at his own expense, either procure for the Purchaser the right to use and continue to use such Plant or replace the same at his own expense with equally efficient non-infringing Plant satisfactory under all requirements of the Contract within the reasonable period to be agreed between the parties, so that the operation of the Purchaser's Plant will not be unduly delayed or interrupted to mitigate the loss of Purchaser as far as possible. If shipment of the plant, or any part thereof is prevented by attachment, injunction or otherwise at, or in the course of transit from the Contractor's factory or other point of origin to the site, as a result of any claim of Patent infringement, the Contractor shall, at his own cost and expense, promptly furnish and post the necessary bond or take such other steps as may be necessary to enable shipment to be made without delay. The Purchaser will have the right to retain counsel of its own choice to collaborate in the defence of any such claim, suit, action or proceeding.

31.0 PROHIBITION ON PUBLICITY

Neither party may advertise or promote itself using the name, Equipment mark or description of the other party, without the prior written consent of the other party in the case of each such use.

32.0 ANNOUNCEMENTS

No party shall issue or make any public announcement or disclose any information regarding this Agreement unless prior to such public announcement or disclosure it furnish to the other Party with a copy of such announcement or information and obtains the approval of such persons to its terms. However, no Party shall be prohibited from issuing or making any such public announcement or disclosing such information if it is necessary to do so to comply with any applicable law or the regulations of a recognized stock exchange.

33.0 AGENCY, PARTNERSHIP ETC.

This Agreement shall not constitute or imply any partnership, joint venture, agency, fiduciary relationship or other relationship between the Parties other than the contractual relationship expressly provided for in this Agreement. Neither Party shall have, nor represent that it has, any authority to make any commitments on the other Party's behalf.

34.0 FURTHER ASSURANCE

Each party to this Agreement shall at the request and expense of the other or any of them execute and do any deeds and other things reasonably necessary to carry out the provisions of this Agreement or to make it easier to enforce.

35.0 SEVERANCE

If any provision of this Agreement is prohibited by law or judged by a court to be unlawful, void or unenforceable, the provision shall, to the extent required, be severed from this Agreement and rendered ineffective as far as possible without modifying the remaining provisions of this Agreement, and shall not in any way affect any other circumstances of or the validity or enforcement of this Agreement.

36.0 CORRUPT OR FRAUDULENT PRACTICES

(i) The Purchaser requires that the Bidders/Contractors, their designated contractors and/or their agents observe the highest standards of ethics during Tendering and execution of this Contract. In pursuance with this policy, the Purchaser:

(a) defines, for the purpose of these provisions, the terms set forth below as standard of ethics:

(i) "corrupt practice" means the offering, giving, receiving or soliciting of anything of value to Purchaser, Engineer or any of their employees, influence in the procurement process or in Contract execution; and

(ii) "fraudulent practice" means a concealment or misrepresentation of facts in order to influence a procurement process or the execution of a Contract to the detriment of the Purchaser, and includes collusive practice among Bidders (prior to or after bid submission) designed to establish bid prices at artificial non-competitive levels and to deprive the Purchaser of the benefits of free and open competition.

(iii) Breach of any of the contract condition during execution.

(iv) Violation of Tata Code of Conduct.

(b) The Purchaser may take such action as per Purchaser's policy in force for violation of standard of ethics. The Purchaser may reject the Tender for the Work or rescind the Contract if the Purchaser determines that the Bidder/Contractor has engaged in violation of standard of ethics. The Purchaser may also declare a Contractor ineligible, either indefinitely or for a stated period of time, to be awarded a Contract/s if he at any time determines that the Contractor has engaged in violation of standard of ethics in competing for, or in executing the Contract.

(c) The Contractors shall inform the Purchaser through Chief Vigilance Officer, Tata Steel Limited of any fraud/suspected fraud as soon as it comes to their notice.

(d) In the event of rescission of Contract under this Clause, the Contractor shall not be entitled to any compensation whatsoever, except for the work done up to the date of rescission.

e-mail address: ethics.counsellor@tatasteel.com

website: www.intouchfeedback.co.uk/tslindia (access code: 26790), toll free no-000 800 440 1102

37.0 MAXIMUM LIABILITY OF THE CONTRACTOR

37.1 Maximum liability of the Contractor under the Contract excluding Patent Infringement (Clause 30.0 of Schedule-6), Indemnity (Clause 25.0 of Schedule-6), copyrights, intellectual properties, willful

misrepresentation, criminal misconduct, workman compensation and fraud shall be limited to 100% of the Contract Price.

SCHEDULE 7

SPECIAL CONDITIONS OF CONTRACT

The following Special Conditions of Contract [SCC] shall supplement the Schedules, Enclosure and Annexures. Whenever there is a conflict, the provisions herein shall prevail over those in the Schedules, Enclosure and Annexures. The corresponding clause number of the Schedules, Enclosures and Annexures is indicated in herein.

7.1 Not Used.

7.2 Till the time Engineer details are provided to Contractor, Purchaser shall be performing all duties and obligations of Engineer mentioned in this Agreement. All communications of Engineer should be given to Purchaser directly till such time. After receipt of details of Engineer from Purchaser in writing, Contractor will coordinate with Engineer for work related to Engineer's Scope under this Agreement.

7.3 Correspondence Address of Contractor

Project Manager
Office at No -128, Gaoneng Street,
Qixianling, Dalian, High Tech Industrial Zone,
Dalian, Liaoning Province, China

7.4 Correspondence Address of Purchaser

Chief Projects Coke, Environment & Energy
Tata Steel Ltd,
Jamshedpur, Jharkhand, India
Post Order Communication :

All post order communication should be addressed to Project Services Group at email id expeditingkpo@tatasteel.com
All inspection related issues should be marked to kpoinspectionoffice@tatasteel.com

ITEM No:-00001 Total Qty:- 1.000 Lot
Total Quantity(in words):- ONE Lot

Material Number :- 5870G2779
WBS No :-
Brief Description :- COKE OVEN BATTERY EQUIPMENT ,COKE OVEN B
Material Group :- 320
Material Group Desc :- PROJECT MATERIAL
Doc Vers No:-

Detail Description

Short text:

COKE OVEN BATTERY EQUIPMENT ,COKE OVEN B

Long Text:

PROJECT MATERIAL NAME:COKE OVEN BATTERY EQUIPMENT
PROJECT MATERIAL DESCRIPTION:COKE OVEN BATTERY EQUIPMENT
PROJECT MATERIAL USED FOR:TSJ
ADDITIONAL PO TEXT:DETAILS ARE IN ADDITIONAL TEXT

SPECIAL FEATURES:-

Additional UMC Text:
Coke Oven Battery 6A & 6B equipment
Class :

Delivery Requirments	Quantity
Delivery date	1.000 Lot
18.05.2025	
Item Charges -	
Item Price @ 8,000,000.00 USD Per 1 Lot	8,000,000.00
USD	

ITEM No:-00002 Total Qty:- 1.000 Lot
Total Quantity(in words):- ONE Lot

Material Number :- 5870G2778
WBS No :-
Brief Description :- COKE OVEN BATTERY REFRACTORY ,COKE OVEN
Material Group :- 320
Material Group Desc :- PROJECT MATERIAL
Doc Vers No:-

Detail Description
Short text:
COKE OVEN BATTERY REFRACTORY ,COKE OVEN

Long Text:
PROJECT MATERIAL NAME:COKE OVEN BATTERY REFRACTORY
PROJECT MATERIAL DESCRIPTION:COKE OVEN BATTERY REFRACTORY
PROJECT MATERIAL USED FOR:TSJ
ADDITIONAL PO TEXT:DETAILS ARE IN ADDITIONAL TEXT
SPECIAL FEATURES:-

Additional UMC Text:
COKE OVEN BATTERY 6A & 6B REFRACTORY
Silica Bricks and mortar, Floating Particle Bricks, Insulating Bricks, C
ite bricks
Class :

Delivery Requirments	Quantity
Delivery date	1.000 Lot
18.05.2025	
Item Charges -	
Item Price @ 8,000,000.00 USD Per 1 Lot	8,000,000.00
USD	

ITEM No:-00003 Total Qty:- 1.000 Lot
Total Quantity(in words):- ONE Lot

ORDER CONTINUATION SHEET

Material Number :- 5870G2779
WBS No :-
Brief Description :- COKE OVEN BATTERY EQUIPMENT ,COKE OVEN B
Material Group :- 320
Material Group Desc :- PROJECT MATERIAL
Doc Vers No:-

Detail Description

Short text:

COKE OVEN BATTERY EQUIPMENT ,COKE OVEN B

Long Text:

PROJECT MATERIAL NAME:COKE OVEN BATTERY EQUIPMENT
PROJECT MATERIAL DESCRIPTION:COKE OVEN BATTERY EQUIPMENT
PROJECT MATERIAL USED FOR:TSJ
ADDITIONAL PO TEXT:DETAILS ARE IN ADDITIONAL TEXT
SPECIAL FEATURES:-

Additional UMC Text:

Coke Oven Battery 6A & 6B equipment

Class :

Delivery Requirments

Delivery date

18.05.2025

Quantity

1.000 Lot

Item Charges -

Item Price @ 8,000,000.00 USD Per 1 Lot
USD

8,000,000.00

ITEM No:-00004 Total Qty:- 1.000 Lot
Total Quantity(in words):- ONE Lot

Material Number :- 5870G2779
WBS No :-
Brief Description :- COKE OVEN BATTERY EQUIPMENT ,COKE OVEN B
Material Group :- 320
Material Group Desc :- PROJECT MATERIAL
Doc Vers No:-

Detail Description

Short text:

COKE OVEN BATTERY EQUIPMENT ,COKE OVEN B

Long Text:

PROJECT MATERIAL NAME:COKE OVEN BATTERY EQUIPMENT
PROJECT MATERIAL DESCRIPTION:COKE OVEN BATTERY EQUIPMENT
PROJECT MATERIAL USED FOR:TSJ
ADDITIONAL PO TEXT:DETAILS ARE IN ADDITIONAL TEXT
SPECIAL FEATURES:-

Additional UMC Text:

Coke Oven Battery 6A & 6B equipment

Class :

ORDER CONTINUATION SHEET

Delivery Requirments

Delivery date	Quantity
18.05.2025	1.000 Lot
Item Charges -	
Item Price @ 8,000,000.00 USD Per 1 Lot	8,000,000.00
USD	

ITEM No:-00005 Total Qty:- 1.000 Lot
Total Quantity(in words):- ONE Lot

Material Number :- 5870G2779
WBS No :-
Brief Description :- COKE OVEN BATTERY EQUIPMENT ,COKE OVEN B
Material Group :- 320
Material Group Desc :- PROJECT MATERIAL
Doc Vers No:-

Detail Description

Short text:
COKE OVEN BATTERY EQUIPMENT ,COKE OVEN B

Long Text:

PROJECT MATERIAL NAME:COKE OVEN BATTERY EQUIPMENT
PROJECT MATERIAL DESCRIPTION:COKE OVEN BATTERY EQUIPMENT
PROJECT MATERIAL USED FOR:TSJ
ADDITIONAL PO TEXT:DETAILS ARE IN ADDITIONAL TEXT
SPECIAL FEATURES:-

Additional UMC Text:

Coke Oven Battery 6A & 6B equipment
Class :

Delivery Requirments

Delivery date	Quantity
18.05.2025	1.000 Lot
Item Charges -	
Item Price @ 7,313,351.13 USD Per 1 Lot	7,313,351.13
USD	

ITEM No:-00006 Total Qty:- 1.000 Lot
Total Quantity(in words):- ONE Lot

Material Number :- 5870G2778
WBS No :-
Brief Description :- COKE OVEN BATTERY REFRACTORY ,COKE OVEN
Material Group :- 320
Material Group Desc :- PROJECT MATERIAL
Doc Vers No:-

ORDER CONTINUATION SHEET

Detail Description

Short text:

COKE OVEN BATTERY REFRACTORY ,COKE OVEN

Long Text:

PROJECT MATERIAL NAME:COKE OVEN BATTERY REFRACTORY

PROJECT MATERIAL DESCRIPTION:COKE OVEN BATTERY REFRACTORY

PROJECT MATERIAL USED FOR:TSJ

ADDITIONAL PO TEXT:DETAILS ARE IN ADDITIONAL TEXT

SPECIAL FEATURES:-

Additional UMC Text:

COKE OVEN BATTERY 6A & 6B REFRACTORY

Silica Bricks and mortar, Floating Particle Bricks, Insulating Bricks, C
ite bricks

Class :

Delivery Requirments

Delivery date

18.05.2025

Quantity

1.000 Lot

Item Charges -

Item Price @ 7,186,648.87 USD Per 1 Lot
USD

7,186,648.87

ITEM No:-00007 Total Qty:- 1.000 Lot

Total Quantity(in words):- ONE Lot

Material Number :- 5870G2779

WBS No :-

Brief Description :- COKE OVEN BATTERY EQUIPMENT ,COKE OVEN B

Material Group :- 320

Material Group Desc :- PROJECT MATERIAL

Doc Vers No:-

Detail Description

Short text:

COKE OVEN BATTERY EQUIPMENT ,COKE OVEN B

Long Text:

PROJECT MATERIAL NAME:COKE OVEN BATTERY EQUIPMENT

PROJECT MATERIAL DESCRIPTION:COKE OVEN BATTERY EQUIPMENT

PROJECT MATERIAL USED FOR:TSJ

ADDITIONAL PO TEXT:DETAILS ARE IN ADDITIONAL TEXT

SPECIAL FEATURES:-

Additional UMC Text:

Coke Oven Battery 6A & 6B equipment

Class :

Delivery Requirments

Delivery date

18.05.2025

Quantity

1.000 Lot

ORDER CONTINUATION SHEET

Item Charges -

Item Price @ 4,000,000.00 USD Per 1 Lot
USD

4,000,000.00

Packaging/Forwarding Charges

0.00 USD

TOTAL PRICE INCLUDING PACKING/DELIVERY FOB

50,500,000.00 USD

ANY COMMISSION PAYABLE TO AN INDIAN AGENT INCLUDED IN THE ABOVE PRICE MUST BE PAID IN INDIA IN INDIAN RUPEES.

PLEASE ENSURE THAT PACKING IS IN ACCORDANCE WITH INTERNATIONAL STANDARDS AND PROVIDE A CERTIFICATE ACCORDINGLY.

PLEASE ENSURE THAT YOUR INVOICE IS IN LINE WITH OUR PURCHASE ORDER. HOWEVER MATERIALS NOT LISTED IN OUR PURCHASE ORDER, BUT WHICH FORMS A PART OF THE SUPPLIED ITEM SHOULD BE MENTIONED IN YOUR INVOICE, AS A SEPARATE ITEM WITH ZERO VALUE AND WITH REFERENCE TO THE MATERIAL LISTED IN OUR ORDER.

IF THE MATERIAL IS REJECTED AT THE CUSTOMER DURING GUARANTY/ WARRANTY PERIOD, THE SUPPLIER WILL HAVE TO REPLACE THE ITEM(S) FREE OF CHARGE AND WILL ALSO HAVE TO BEAR THE CUSTOMS DUTY, FREIGHT AND INSURANCE APPLICABLE TO THE PARTICULAR CONSIGNMENT.

PLEASE INDICATE 'FREE OF COST' VALUE FOR CUSTOM PURPOSES FOR FREE OF COST SHIPMENTS ONLY, WHEN APPLICABLE .

THIS ORDER NEEDS TO BE ACKNOWLEDGED. PLEASE NOTE OUR CONDITIONS AND DELIVERY REQUIREMENTS AND CONFIRM YOUR AGREEMENT.

PLEASE ENSURE HANDING OVER A COPY OF YOUR COMMERCIAL INVOICE / PROFORMA INVOICE TO CONCERNED AGENCIES.

Clause with respect to Anti-bribery in contracts/P0s

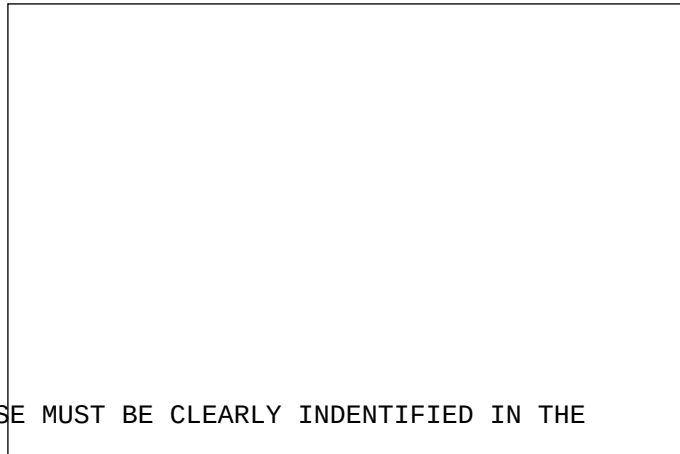
A.(The Service Provider/Vendor) acknowledges and agrees that it has not and will not, make or promise to make corrupt payments of money or anything of value, directly or indirectly, to any government or public international organization officials, political parties, or candidates for public office, or employee of a commercial customer or supplier, for the purpose of obtaining or retaining business or securing any improper advantage.(The Service Provider/Vendor) also agrees that it shall not engage in any activity that would expose TSL to a risk of penalties under the laws and regulations of any relevant jurisdiction, like the Prevention of Corruption Act 1988 and Prevention of Corruption(Amendment) Act 2018 or any applicable local laws, prohibiting improper payments, including but not limited to bribes to officials of any government or private agency.

B.(The Service Provider/Vendor) hereby represents that it has not and shall not itself or through any of its personnel or any other entity, by whatever name called, give or will give or promise to give any money or gift to any employee/official of TSL to influence their decision regarding this Agreement, nor shall it exert or utilize any unlawful influence through a promise to pay a commission, percentage, brokerage or contingent fee to secure or solicit any extension hereof.

C.(The Service Provider/Vendor) agrees that breach of this clause shall be sufficient ground for TSL to terminate this Agreement immediately without prejudice to the (The Service Provider/Vendor) liability under applicable laws. Further, breach of this clause shall also be sufficient ground for TSL to withhold any and all payments, which may be due to the(The Service Provider/Vendor) and for TSL to initiate appropriate legal actions against the (The Service Provider/Vendor).

1. Notwithstanding anything contained in the Contract/ P.O., acceptance of Goods shall be subject to inspection by the Buyer in order to determine its conformity with the quality and fitness standards underlined in the Contract/ P.O. Inspection shall be conducted at the premises of the Buyer or at any other place where final delivery to the Buyer is made. The Buyer may conduct necessary testing and perform such acts it deems fit to determine fitness of the goods delivered.
2. Inspection shall be conducted within 60 days of the delivery of the goods at the place mutually agreed between the Parties or at the time of installation of the goods at Buyer place of business, whichever is later. Buyer shall give an intimation regarding rejection of goods to the Seller within 21 days of the inspection.
3. The Seller shall within 60 days of receiving notice regarding rejection remove goods from the place as specified in the rejection notice. In case, the Seller fails to remove goods from place specified in the rejection notice post expiry of 60 days, it shall be deemed abandonment of goods and Buyer may dispose off the same at expense of Seller, in manner it may deem fit. In addition to the any amount recoverable from the Seller, the Buyer shall be entitled to recover amount spent on safe keeping of the goods from the date of granting notice to the Seller regarding rejection of goods and cost of disposal of the goods out of proceed of such disposal of goods.

PLEASE NOTE THAT THE DESPATCH OF THIS ORDER WILL BE ARANGED BY OUR FOLLOWING FREIGHT FORWARDING AGENT:



IF MORE THAN ONE ITEM IS BEING SUPPLIED, THESE MUST BE CLEARLY IDENTIFIED IN THE CASE(S). THIS IS MOST IMPORTANT.

IMMEDIATELY THIS ORDER BECOMES AVAILABLE , PLEASE APPLY FOR DELIVERY INSTRUCTIONS TO OUR ABOVE AGENT.

ALL PACKAGES AND PARCELS TO BE PLAINLY MARKED:

COUNTRY OF ORIGIN.....

TATA STEEL LIMITED

Please also forward 6 copies of invoice.

TATA STEEL/2400002304
WORKS REF: Engineering

C_NOADD

Import is covered by Licence No:
FREELY IMPORTABLE AS PER CHAPTER 2 PARA 2.01
OF FOREIGN TRADE POLICY (2015 - 2020)
W.E.F 01/04/2015 valid till 31/03/2020.

FINAL DESTINATION :

TATA STEEL/KOL/HAL/
GROSS WEIGHT..... NET WEIGHT.....

Terms of Payment : annexures
Payment term as indicated in special conditions /

Quotation Ref.: MAIL
Quotation date: 25.12.2021

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TATA LIMITED Agents for
TATA STEEL LIMITED

IMPORTANT NOTE

At the sole discretion of Tata Steel, you shall have no objection and shall fully extend co-operation for Novation / Assignment, without your prior consent, of this order/contract including bank guarantees to Tata Steel Odisha Ltd, a wholly owned subsidiary of Tata Steel.

In line with the above, the bank guarantees wherever applicable, shall have the

following provision -"Tata Steel shall be within its rights to assign the APBG and CPBG (Guarantees) to Tata Steel Odisha Ltd without our prior consent. Accordingly, our obligations under these Guarantees as applicable to Tata Steel shall also be applicable to TataSteel Odisha Ltd".